

Contract of sale of real estate – Particulars of sale

Part 1 of the standard form of contract prescribed by the Estate Agents (Contracts) Regulations 2008

Property address

70A Tyquin Street LAVERTON VIC 3028

The vendor agrees to sell and the purchaser agrees to buy the property, being the land and the goods, for the price and on the terms set out in this contract.

The terms of this contract are contained in the:

- Particulars of sale; and
- Special conditions, if any; and
- General conditions

in that order of priority.

Important notice to purchasers

Cooling-off period

Section 31, Sale of Land Act 1962

You may end this contract within 3 clear business days of the day that you sign the contract if none of the exceptions listed below applies to you.

You must either give the vendor or the vendor's agent written notice that you are ending the contract or leave the notice at the address of the vendor or the vendor's agent to end this contract within this time in accordance with this cooling-off provision.

You are entitled to a refund of all the money you paid **except** for \$100 or 0-2% of the purchase price (whichever is more) if you end the contract in this way.

Exceptions

The 3-day cooling-off period does not apply if:

- you bought the property at or within 3 clear business days before or after a publicly advertised auction; or
- the property is used primarily for industrial or commercial purposes; or
- the property is more than 20 hectares in size and is used primarily for farming; or
- you and the vendor have previously signed a contract for the sale of the same land in substantially the same terms; or
- you are an estate agent or a corporate body.

Signing of this contract

Warning: this is a legally binding agreement. You should read this contract before signing it.

Purchasers should ensure that prior to signing this contract, they have received:

- a copy of the section 32 statement required to be given by a vendor under section 32 of the *Sale of Land Act 1962* in accordance with Division 2 of Part II of that Act; and
- a copy of the full terms of this contract.

The authority of a person signing:

- under power of attorney; or
- as director of a corporation; or
- as an agent authorised in writing by one of the parties

must be noted beneath the signature.

Any person whose signature is secured by an estate agent acknowledges being given by the agent at the time of signing a copy of the terms of this contract.

Signed by the purchaser



on
dd/mm/yyyy

03/10/24

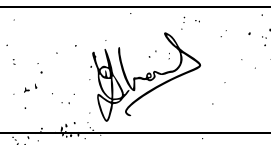
Print name(s) of person(s) signing

Spandana Ranga

State nature of authority if applicable
e.g. 'director', 'attorney under power
of attorney'

This offer will lapse unless accepted within [] clear business days (3 clear business days if none specified).

Signed by the vendor



on
dd/mm/yyyy

04/10/2024

Print name(s) of person(s) signing

Lloyd Thomas

State nature of authority if applicable
e.g. 'director', 'attorney under power
of attorney'

The **day of sale** is the date by which both parties have signed this contract.

Notice to purchasers of property “off-the-plan”

Section 9AA(1A), *Sale of Land Act 1962*

You may negotiate with the vendor about the amount of the deposit moneys payable under the contract of sale, up to 10 per cent of the purchase price.

A substantial period of time may elapse between the day on which you sign the contract of sale and the day on which you become the registered proprietor of the lot.

The value of the lot may change between the day on which you sign the contract of sale of that lot and the day on which you become the registered proprietor.

Particulars of sale

Vendor's estate agent

Name:	Beyond Property Enterprises Pty Ltd
Address:	Level 11, 456 Lonsdale Street, Melbourne VIC 3000
Telephone:	0458 729 953
Fax:	
Email:	waran@beyond.property

Vendor

Name(s):	THOMAS EMPIRE PTY LTD
Address:	
Telephone:	
Email:	

Vendor's legal practitioner or conveyancer

Name:	Ascot Solicitors
Address:	PO Box 303 DEER PARK VIC 3023
Telephone:	03 8390 1711
Fax:	
Email:	nevin@ascotsolicitors.com.au

Purchaser

Name(s):	Spandana Ranga
Address:	
Telephone:	
Email:	spandanaranga@gmail.com

Purchaser's legal practitioner or conveyancer

Name:	
Address:	
Telephone:	
Fax:	
Email:	

Land (general conditions 3 and 9)

The land is described in the following table.

Certificate of Title reference				being lot	on plan
Volume	12186	Folio	267	2	PS830422T
Volume		Folio			

or

described in the copy title(s) and plan(s) as attached to the Vendor’s Statement if no title or plan references are recorded in the table above or if the land is general law land.

The land includes all improvements and fixtures.

Property address The address of the land	70A Tyquin Street LAVERTON VIC 3028
Goods sold with the land General condition 2.3(f). List or attach schedule.	

Payment (general condition 11)

Price	\$570,000.00
Deposit	\$28,500.00
by dd/mm/yyyy	14/10/2024
(of which [amount] has been paid)	
Balance payable at settlement	\$541,500.00

GST (general condition 13)

The price includes GST (if any) unless the words ‘plus GST’ appear in this box:	
If this is a sale of a ‘farming business’ or ‘going concern’ then add the words ‘farming business’ or ‘going concern’ in this box:	

If the margin scheme will be used to calculate GST then add the words 'margin scheme' in this box

Settlement (general condition 10)

SR

Is due on:
dd/mm/yyyy

02/12/24

unless the land is a lot on an unregistered plan of subdivision, in which case settlement is due on the later of:

- the above date; or
- 14 days after the vendor gives notice in writing to the purchaser of registration of the plan of subdivision.

Lease (general condition 1.1)

At settlement the purchaser is entitled to vacant possession of the property unless the words 'subject to lease' appear in this box:

in which case refer to general condition 1.1. If 'subject to lease' then particulars of the lease are:

Terms contract (general condition 23)

If this contract is intended to be a terms contract within the meaning of the *Sale of Land Act 1962* then add the words 'terms contract' in this box

and refer to general condition 23 and add any further provisions by way of special conditions.

Loan (general condition 14)

The following details apply if this contract is subject to a loan being approved:

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Lender	Any Financial Institution
Loan amount	
Approval date	14/10/24

Special conditions

This contract does not include any special conditions unless the words '**special conditions**' appear in this box:

SPECIAL CONDITIONS

Contract of sale of real estate—Special Conditions

Instructions: it is recommended that when adding special conditions:

- each special condition is numbered;
- the parties initial each page containing special conditions;
- a line is drawn through any blank space remaining on this page; and
- attach additional pages if there is not enough space and number pages accordingly (eg.5a, 5b, 5c etc.)

* Subject to finance - finance to be approved on or before the 14th of October 2024

* Subject to Caveat on the title to be removed prior to settlement by the vendor

* Subject to completion of any pending works as per the build specification

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Contract of sale of real estate—general conditions

Part 2 of the standard form of contract prescribed by the Estate Agents (Contracts) Regulations 2008

Title

1. Encumbrances

- 1.1 The purchaser buys the property subject to:
 - a) any encumbrance shown in the section 32 statement other than mortgages or caveats; and
 - b) any reservations in the crown grant; and
 - c) any lease referred to in the particulars of sale.
- 1.2 The purchaser indemnifies the vendor against all obligations under any lease that are to be performed by the landlord after settlement.
- 1.3 In this general condition 'section 32 statement' means a statement required to be given by a vendor under section 32 of the *Sale of Land Act 1962* in accordance with Division 2 of Part II of that Act.

2. Vendor warranties

- 2.1 The vendor warrants that these general conditions 1 to 28 are identical to the general conditions 1 to 28 in the standard form of contract of sale of real estate prescribed by the Estate Agents (Contracts) Regulations 2008 for the purposes of section 53A of the Estate Agents Act 1980.
- 2.2 The warranties in general conditions 2.3 and 2.4 replace the purchaser's right to make requisitions and inquiries.

The vendor warrants that the vendor:

- a) has, or by the due date for settlement will have, the right to sell the land; and
 - b) is under no legal disability; and
 - c) is in possession of the land, either personally or through a tenant; and
 - d) has not previously sold or granted any option to purchase, agreed to a lease or granted a pre-emptive right which is current over the land and which gives another party rights which have priority over the interest of the purchaser; and
 - e) will at settlement be the holder of an unencumbered estate in fee simple in the land; and
 - f) will at settlement be the unencumbered owner of any improvements, fixtures, fittings and goods sold with the land.
- 2.3 The vendor further warrants that the vendor has no knowledge of any of the following:
 - a) public rights of way over the land;
 - b) easements over the land;
 - c) lease or other possessory agreement affecting the land;
 - d) notice or order affecting the land which will not be dealt with at settlement, other than the usual rate notices and any land tax notices;
 - e) legal proceedings which would render the sale of the land void or voidable or capable of being set aside.
- 2.4 The warranties in general conditions 2.3 and 2.4 are subject to any contrary provisions in this contract and disclosures in the section 32 statement required to be given by the vendor under section 32 of the *Sale of Land Act 1962* in accordance with Division 2 of Part II of that Act.
- 2.5 If sections 137B and 137C of the **Building Act 1993** apply to this contract, the vendor warrants that:
 - a) all domestic building work carried out in relation to the construction by or on behalf of the vendor of the home was carried out in a proper and workmanlike manner; and

- b) all materials used in that domestic building work were good and suitable for the purpose for which they were used and that, unless otherwise stated in the contract, those materials were new; and
- c) domestic building work was carried out in accordance with all laws and legal requirements, including, without limiting the generality of this warranty, the **Building Act 1993** and regulations made under the **Building Act 1993**.

2.6 Words and phrases used in general condition 2.6 which are defined in the **Building Act 1993** have the same meaning in general condition 2.6.

3. Identity of the land

3.1 An omission or mistake in the description of the property or any deficiency in the area, description or measurements of the land does not invalidate the sale.

3.2 The purchaser may not:

- a) make any objection or claim for compensation for any alleged misdescription of the property or any deficiency in its area or measurements; or
- b) require the vendor to amend title or pay any cost of amending title.

4. Services

4.1 The vendor does not represent that the services are adequate for the purchaser's proposed use of the property and the vendor advises the purchaser to make appropriate inquiries. The condition of the services may change between the day of sale and settlement and the vendor does not promise that the services will be in the same condition at settlement as they were on the day of sale.

4.2 The purchaser is responsible for the connection of all services to the property after settlement and the payment of any associated cost.

5. Consents

The vendor must obtain any necessary consent or licence required for the sale. The contract will be at an end and all money paid must be refunded if any necessary consent or licence is not obtained by settlement.

6. Transfer

The transfer of land document must be prepared by the purchaser and delivered to the vendor at least 10 days before settlement. The delivery of the transfer of land document is not acceptance of title. The vendor must prepare any document required for assessment of duty on this transaction relating to matters that are or should be within the knowledge of the vendor and, if requested by the purchaser, must provide a copy of that document at least 3 days before settlement.

7. Release of security interest

7.1 This general condition applies if any part of the property is subject to a security interest to which the Personal Property Securities Act 2009 (Cth) applies.

7.2 For the purposes of enabling the purchaser to search the Personal Property Securities Register for any security interests affecting any personal property for which the purchaser may be entitled to a release, statement, approval or correction in accordance with general condition 7.4, the purchaser may request the vendor to provide the vendor's date of birth to the purchaser. The vendor must comply with a request made by the purchaser under this condition if the purchaser makes the request at least 21 days before the due date for settlement.

7.3 If the purchaser is given the details of the vendor's date of birth under condition 7.2, the purchaser must:

- a) only use the vendor's date of birth for the purposes specified in condition 7.2; and
- b) keep the date of birth of the vendor secure and confidential.

7.4 The vendor must ensure that at or before settlement, the purchaser receives:

- a) a release from the secured party releasing the property from the security interest; or

- b) a statement in writing in accordance with section 275(1)(b) of the **Personal Property Securities Act 2009 (Cth)** setting out that the amount or obligation that is secured is nil at settlement; or
 - c) a written approval or correction in accordance with section 275(1)(c) of the **Personal Property Securities Act 2009 (Cth)** indicating that, on settlement, the personal property included in the contract is not or will not be property in which the security interest is granted.
- 7.5 Subject to general condition 7.6, the vendor is not obliged to ensure that the purchaser receives a release, statement, approval or correction in respect of personal property:
- a) that:
 - i) the purchaser intends to use predominantly for personal, domestic or household purposes; and
 - ii) has a market value of not more than \$5000 or, if a greater amount has been prescribed for the purposes of section 47(1) of the **Personal Property Securities Act 2009 (Cth)**, not more than that prescribed amount; or
 - b) that is sold in the ordinary course of the vendor's business of selling personal property of that kind.
- 7.6 The vendor is obliged to ensure that the purchaser receives a release, statement, approval or correction in respect of personal property described in general condition 7.5 if:
- a) the personal property is of a kind that may or must be described by serial number in the Personal Property Securities Register; or
 - b) the purchaser has actual or constructive knowledge that the sale constitutes a breach of the security agreement that provides for the security interest.
- 7.7 A release for the purposes of general condition 7.4(a) must be in writing.
- 7.8 A release for the purposes of general condition 7.4(a) must be effective in releasing the goods from the security interest and be in a form which allows the purchaser to take title to the goods free of that security interest.
- 7.9 If the purchaser receives a release under general condition 7.4(a) the purchaser must provide the vendor with a copy of the release at or as soon as practicable after settlement.
- 7.10 In addition to ensuring that a release is received under general condition 7.4(a), the vendor must ensure that at or before settlement the purchaser receives a written undertaking from a secured party to register a financing change statement to reflect that release if the property being released includes goods of a kind that are described by serial number in the Personal Property Securities Register.
- 7.11 The purchaser must advise the vendor of any security interest that is registered on or before the day of sale on the Personal Properties Securities Register, which the purchaser reasonably requires to be released, at least 21 days before the due date for settlement.
- 7.12 The vendor may delay settlement until 21 days after the purchaser advises the vendor of the security interests that the purchaser reasonably requires to be released if the purchaser does not provide an advice under general condition 7.11.
- 7.13 If settlement is delayed under general condition 7.12 the purchaser must pay the vendor—
- a) interest from the due date for settlement until the date on which settlement occurs or 21 days after the vendor receives the advice, whichever is the earlier; and
 - b) any reasonable costs incurred by the vendor as a result of the delay—
- as though the purchaser was in default.
- 7.14 The vendor is not required to ensure that the purchaser receives a release in respect of the land. This general condition 7.14 applies despite general condition 7.1.
- 7.15 Words and phrases which are defined in the **Personal Property Securities Act 2009 (Cth)** have the same meaning in general condition 7 unless the context requires otherwise.

8. Builder warranty insurance

The vendor warrants that the vendor will provide at settlement details of any current builder warranty insurance in the vendor's possession relating to the property if requested in writing to do so at least 21 days before settlement.

9. General law land

- 9.1 This general condition only applies if any part of the land is not under the operation of the **Transfer of Land Act 1958**.
- 9.2 The vendor is taken to be the holder of an unencumbered estate in fee simple in the land if there is an unbroken chain of title starting at least 30 years before the day of sale proving on the face of the documents the ownership of the entire legal and equitable estate without the aid of other evidence.
- 9.3 The purchaser is entitled to inspect the vendor's chain of title on request at such place in Victoria as the vendor nominates.
- 9.4 The purchaser is taken to have accepted the vendor's title if:
- a) 21 days have elapsed since the day of sale; and
 - b) the purchaser has not reasonably objected to the title or reasonably required the vendor to remedy a defect in the title.
- 9.5 The contract will be at an end if:
- a) the vendor gives the purchaser a notice that the vendor is unable or unwilling to satisfy the purchaser's objection or requirement and that the contract will end if the objection or requirement is not withdrawn within 14 days of the giving of the notice; and
 - b) the objection or requirement is not withdrawn in that time.
- 9.6 If the contract ends in accordance with general condition 9.5, the deposit must be returned to the purchaser and neither party has a claim against the other in damages.
- 9.7 General condition 10.1 should be read, in respect of that part of the land which is not under the operation of the **Transfer of Land Act 1958**, as if the reference to 'registered proprietor' is a reference to 'owner'.

Money

10. Settlement

- 10.1 At settlement:
- a) the purchaser must pay the balance; and
 - b) the vendor must:
 - i) do all things necessary to enable the purchaser to become the registered proprietor of the land; and
 - ii) give either vacant possession or receipt of rents and profits in accordance with the particulars of sale.
- 10.2 The vendor's obligations under this general condition continue after settlement.
- 10.3 Settlement must be conducted between the hours of 10.00 a.m. and 4.00 p.m. unless the parties agree otherwise.

11. Payment

- 11.1 The purchaser must pay the deposit:
- a) to the vendor's licensed estate agent; or
 - b) if there is no estate agent, to the vendor's legal practitioner or conveyancer; or
 - c) if the vendor directs, into a special purpose account in an authorised deposit-taking institution in Victoria specified by the vendor in the joint names of the purchaser and the vendor.

11.2 If the land sold is a lot on an unregistered plan of subdivision, the deposit:

- a) must not exceed 10% of the price; and
- b) must be paid to the vendor's estate agent, legal practitioner or conveyancer and held by the estate agent, legal practitioner or conveyancer on trust for the purchaser until the registration of the plan of subdivision.

11.3 The purchaser must pay all money other than the deposit:

- a) to the vendor, or the vendor's legal practitioner or conveyancer; or
- b) in accordance with a written direction of the vendor or the vendor's legal practitioner or conveyancer.

11.4 At settlement, payments may be made or tendered:

- a) in cash; or
- b) by cheque drawn on an authorised deposit-taking institution; or
- c) if the parties agree, by electronically transferring the payment in the form of cleared funds.

11.5 For the purpose of this general condition 'authorised deposit-taking institution' means a body corporate in relation to which an authority under section 9(3) of the **Banking Act 1959 (Cth)** is in force.

11.6 At settlement, the purchaser must pay the fees on up to three cheques drawn on an authorised deposit-taking institution. If the vendor requests that any additional cheques be drawn on an authorised deposit-taking institution, the vendor must reimburse the purchaser for the fees incurred.

12. Stakeholding

12.1 The deposit must be released to the vendor if :

- a) the vendor provides particulars, to the satisfaction of the purchaser, that either—
 - i) there are no debts secured against the property; or
 - ii) if there are any debts, the total amount of those debts does not exceed 80% of the sale price; and
- b) at least 28 days have elapsed since the particulars were given to the purchaser under paragraph (a); and
- c) all conditions of section 27 of the **Sale of Land Act 1962** have been satisfied.

12.2 The stakeholder must pay the deposit and any interest to the party entitled when the deposit is released, the contract is settled, or the contract is ended.

12.3 The stakeholder may pay the deposit and any interest into court if it is reasonable to do so.

13. GST

13.1 The purchaser does not have to pay the vendor any GST payable by the vendor in respect of a taxable supply made under this contract in addition to the price unless the particulars of sale specify that the price is 'plus GST'. However the purchaser must pay to the vendor any GST payable by the vendor:

- a) solely as a result of any action taken or intended to be taken by the purchaser after the day of sale, including a change of use; or
- b) if the particulars of sale specify that the supply made under this contract is of land on which a farming business is carried on and the supply (or a part of it) does not satisfy the requirements of section 38-480 of the GST Act; or
- c) if the particulars of sale specify that the supply made under this contract is of a going concern and the supply (or a part of it) does not satisfy the requirements of section 38-325 of the GST Act.

13.2 The purchaser must pay to the vendor any GST payable by the vendor in respect of a taxable supply made under this contract in addition to the price if the particulars of sale specify that the price is 'plus GST'.

13.3 If the purchaser is liable to pay GST, the purchaser is not required to make payment until provided with a tax invoice, unless the margin scheme applies.

13.4 If the particulars of sale specify that the supply made under this contract is of land on which a 'farming business' is carried on:

- a) the vendor warrants that the property is land on which a farming business has been carried on for the period of 5 years preceding the date of supply; and
- b) the purchaser warrants that the purchaser intends that a farming business will be carried on after settlement on the property.

13.5 If the particulars of sale specify that the supply made under this contract is a 'going concern':

- a) the parties agree that this contract is for the supply of a going concern; and
- b) the purchaser warrants that the purchaser is, or prior to settlement will be, registered for GST; and
- c) the vendor warrants that the vendor will carry on the going concern until the date of supply.

13.6 If the particulars of sale specify that the supply made under this contract is a 'margin scheme' supply, the parties agree that the margin scheme applies to this contract.

13.7 This general condition will not merge on either settlement or registration.

13.8 In this general condition:

- a) 'GST Act' means A New Tax System (Goods and Services Tax) Act 1999 (Cth); and
- b) 'GST' includes penalties and interest.

14. Loan

14.1 If the particulars of sale specify that this contract is subject to a loan being approved, this contract is subject to the lender approving the loan on the security of the property by the approval date or any later date allowed by the vendor.

14.2 The purchaser may end the contract if the loan is not approved by the approval date, but only if the purchaser:

- a) immediately applied for the loan; and
- b) did everything reasonably required to obtain approval of the loan; and
- c) serves written notice ending the contract on the vendor within 2 clear business days after the approval date or any later date allowed by the vendor; and
- d) is not in default under any other condition of this contract when the notice is given.

14.3 All money must be immediately refunded to the purchaser if the contract is ended.

15. Adjustments

15.1 All periodic outgoings payable by the vendor, and any rent and other income received in respect of the property must be apportioned between the parties on the settlement date and any adjustments paid and received as appropriate.

15.2 The periodic outgoings and rent and other income must be apportioned on the following basis:

- a) the vendor is liable for the periodic outgoings and entitled to the rent and other income up to and including the day of settlement; and
- b) the land is treated as the only land of which the vendor is owner (as defined in the **Land Tax Act 2005**); and
- c) the vendor is taken to own the land as a resident Australian beneficial owner; and
- d) any personal statutory benefit available to each party is disregarded in calculating apportionment.

Transactional

16. Time

16.1 Time is of the essence of this contract.

16.2 Time is extended until the next business day if the time for performing any action falls on a Saturday, Sunday or bank holiday.

17. Service

17.1 Any document sent by:

- a) post is taken to have been served on the next business day after posting, unless proved otherwise;
- b) email is taken to have been served at the time of receipt within the meaning of section 13A of the **Electronic Transactions (Victoria) Act 2000**.

17.2 Any demand, notice or document required to be served by or on any party may be served by or on the legal practitioner or conveyancer for that party. It is sufficiently served if served on the party or on the legal practitioner or conveyancer—

- a) personally; or
- b) by pre-paid post; or
- c) In any manner authorised by law or the Supreme Court for service of documents, including any manner authorised for service on or by a legal practitioner; or
- d) by email.

17.3 This general condition applies to the service of any demand, notice or document by or on any party, whether the expression 'give' or 'serve' or any other expression is used.

18. Nominee

The purchaser may nominate a substitute or additional transferee, but the named purchaser remains personally liable for the due performance of all the purchaser's obligations under this contract.

19. Liability of signatory

Any signatory for a proprietary limited company purchaser is personally liable for the due performance of the purchaser's obligations as if the signatory were the purchaser in the case of a default by a proprietary limited company purchaser.

20. Guarantee

The vendor may require one or more directors of the purchaser to guarantee the purchaser's performance of this contract if the purchaser is a proprietary limited company.

21. Notices

The purchaser is responsible for any notice, order, demand or levy imposing liability on the property that is issued or made on or after the day of sale that does not relate to periodic outgoings. The purchaser may enter the property to comply with that responsibility where action is required before settlement.

22. Inspection

The purchaser and/or another person authorised by the purchaser may inspect the property at any reasonable time during the 7 days preceding and including the settlement day.

23. Terms contract

23.1 If this is a 'terms contract' as defined in the **Sale of Land Act 1962**:

- a) any mortgage affecting the land sold must be discharged as to that land before the purchaser becomes entitled to possession or to the receipt of rents and profits unless the vendor satisfies section 29M of the **Sale of Land Act 1962**; and

- b) the deposit and all other money payable under the contract (other than any money payable in excess of the amount required to so discharge the mortgage) must be paid to a legal practitioner or conveyancer or a licensed estate agent to be applied in or towards discharging the mortgage.

23.2 While any money remains owing each of the following applies:

- a) the purchaser must maintain full damage and destruction insurance of the property and public risk insurance noting all parties having an insurable interest with an insurer approved in writing by the vendor;
- b) the purchaser must deliver copies of the signed insurance application forms, the policies and the insurance receipts to the vendor not less than 10 days before taking possession of the property or becoming entitled to receipt of the rents and profits;
- c) the purchaser must deliver copies of any amendments to the policies and the insurance receipts on each amendment or renewal as evidence of the status of the policies from time to time;
- d) the vendor may pay any renewal premiums or take out the insurance if the purchaser fails to meet these obligations;
- e) insurance costs paid by the vendor under paragraph (d) must be refunded by the purchaser on demand without affecting the vendor's other rights under this contract;
- f) the purchaser must maintain and operate the property in good repair (fair wear and tear excepted) and keep the property safe, lawful, structurally sound, weatherproof and free from contaminations and dangerous substances;
- g) the property must not be altered in any way without the written consent of the vendor which must not be unreasonably refused or delayed;
- h) the purchaser must observe all obligations that affect owners or occupiers of land;
- i) the vendor and/or other person authorised by the vendor may enter the property at any reasonable time to inspect it on giving 7 days written notice, but not more than twice in a year.

24. Loss or damage before settlement

24.1 The vendor carries the risk of loss or damage to the property until settlement.

24.2 The vendor must deliver the property to the purchaser at settlement in the same condition it was in on the day of sale, except for fair wear and tear.

24.3 The purchaser must not delay settlement because one or more of the goods is not in the condition required by general condition 24.2, but may claim compensation from the vendor after settlement.

24.4 The purchaser may nominate an amount not exceeding \$5,000 to be held by a stakeholder to be appointed by the parties if the property is not in the condition required by general condition 24.2 at settlement.

24.5 The nominated amount may be deducted from the amount due to the vendor at settlement and paid to the stakeholder, but only if the purchaser also pays an amount equal to the nominated amount to the stakeholder.

24.6 The stakeholder must pay the amounts referred to in general condition 24.5 in accordance with the determination of the dispute, including any order for payment of the costs of the resolution of the dispute.

25. Breach

A party who breaches this contract must pay to the other party on demand:

- a) compensation for any reasonably foreseeable loss to the other party resulting from the breach; and
- b) any interest due under this contract as a result of the breach.

Default

26. Interest

Interest at a rate of 2% per annum plus the rate for the time being fixed by section 2 of the **Penalty Interest Rates Act 1983** is payable on any money owing under the contract during the period of default, without affecting any other rights of the offended party.

27. Default notice

27.1 A party is not entitled to exercise any rights arising from the other party's default, other than the right to receive interest and the right to sue for money owing, until the other party is given and fails to comply with a written default notice.

27.2 The default notice must:

- a) specify the particulars of the default; and
- b) state that it is the offended party's intention to exercise the rights arising from the default unless, within 14 days of the notice being given:
 - i) the default is remedied; and
 - ii) the reasonable costs incurred as a result of the default and any interest payable are paid.

28. Default not remedied

28.1 All unpaid money under the contract becomes immediately payable to the vendor if the default has been made by the purchaser and is not remedied and the costs and interest are not paid.

28.2 The contract immediately ends if:

- a) the default notice also states that unless the default is remedied and the reasonable costs and interest are paid, the contract will be ended in accordance with this general condition; and
- b) the default is not remedied and the reasonable costs and interest are not paid by the end of the period of the default notice.

28.3 If the contract ends by a default notice given by the purchaser:

- a) the purchaser must be repaid any money paid under the contract and be paid any interest and reasonable costs payable under the contract; and
- b) all those amounts are a charge on the land until payment; and
- c) the purchaser may also recover any loss otherwise recoverable.

28.4 If the contract ends by a default notice given by the vendor:

- a) the deposit up to 10% of the price is forfeited to the vendor as the vendor's absolute property, whether the deposit has been paid or not; and
- b) the vendor is entitled to possession of the property; and
- c) in addition to any other remedy, the vendor may within one year of the contract ending either:
 - i) retain the property and sue for damages for breach of contract; or
 - ii) resell the property in any manner and recover any deficiency in the price on the resale and any resulting expenses by way of liquidated damages; and
- d) the vendor may retain any part of the price paid until the vendor's damages have been determined and may apply that money towards those damages; and
- e) any determination of the vendor's damages must take into account the amount forfeited to the vendor.

28.5 The ending of the contract does not affect the rights of the offended party as a consequence of the default.

GUARANTEE and INDEMNITY

I/We, of

and of

being the **Sole Director / Directors** of ACN
(called the "Guarantors") IN CONSIDERATION of the Vendor selling to the Purchaser at our request the Land described in this Contract of Sale for the price and upon the terms and conditions contained therein **DO** for ourselves and our respective executors and administrators **JOINTLY AND SEVERALLY COVENANT** with the said Vendor and their assigns that if at any time default shall be made in payment of the Deposit Money or residue of Purchase Money or interest or any other moneys payable by the Purchaser to the Vendor under this Contract or in the performance or observance of any term or condition of this Contract to be performed or observed by the Purchaser I/we will immediately on demand by the Vendor pay to the Vendor the whole of the Deposit Money, residue of Purchase Money, interest or other moneys which shall then be due and payable to the Vendor and indemnify and agree to keep the Vendor indemnified against all loss of Deposit Money, residue of Purchase Money, interest and other moneys payable under the within Contract and all losses, costs, charges and expenses whatsoever which the Vendor may incur by reason of any default on the part of the Purchaser. This Guarantee shall be a continuing Guarantee and Indemnity and shall not be released by:-

- (a) any neglect or forbearance on the part of the Vendor in enforcing payment of any of the moneys payable under the within Contract;
- (b) the performance or observance of any of the agreements, obligations or conditions under the within Contract;
- (c) by time given to the Purchaser for any such payment performance or observance;
- (d) by reason of the Vendor assigning his, her or their rights under the said Contract; and
- (e) by any other thing which under the law relating to sureties would but for this provision have the effect of releasing me/us, my/our executors or administrators.

IN WITNESS whereof the parties hereto have set their hands and seals

this day of 20.....

SIGNED SEALED AND DELIVERED by the said)

Print Name.....

in the presence of:

Witness.....

Director (Sign)

SIGNED SEALED AND DELIVERED by the said)

Print Name.....

in the presence of:

Witness.....

Director (Sign)

Special Conditions

Instructions: it is recommended that when adding special conditions:

In these special conditions the following terms have the following meanings:

1. Definitions

"Approvals" means any permit, licence, consent, certificate or other approval obtained or required to be obtained from an Authority in connection with the development of the Site.

"Authority" means any government or any public, statutory, service authority, governmental, semi-governmental, local governmental, municipal or judicial body, entity or authority and includes a Minister of the Crown (in any right), and any person, body, entity or authority exercising a power pursuant to an Act of Parliament.

"Business Day" means any day which is not a Saturday, Sunday or proclaimed public holiday in the State of Victoria.

"Contract" means this contract of sale and includes all enclosure and annexures. "Claim"

means any and all claims, actions, disputes, differences, demands, proceedings, accounts, interest, costs (whether or not the subject of a court order), Loss, expenses and debts or liability of any kind (including those which are prospective or contingent and those the amount of which is not ascertained) of whatever nature and however arising.

"Deposit" means an amount equal to the proportion of the price that is set out as the deposit in the particulars of sale.

"General Conditions" are the conditions set out in Part 2 of this Contract and being Part 2 of the standard form of contract prescribed by the *Estate Agents (Contracts) Regulations 2008 (Vic)*.

"Loss" means any loss (including loss of profit and loss of expected profit), claim, action, liability, proceedings, summons, demand, notice, damage, death, personal injury, suit, judgement, injunction, order, decree, cost, charge, expense, outgoing, payment, damages, diminution in value or deficiency of any kind or character which a party pays, suffers or incurs or is liable for including:

- (a) Liabilities on account of any tax of any nature whatsoever;
- (b) Interest and other amounts payable to third parties;
- (c) Legal (on a full indemnity basis) and other expenses reasonably incurred in connection with investigating or defending any claim or action, whether or not resulting in any liability;
- (d) Amounts paid in settlement of any claim or action; and
- (e) Consequential loss and damage (irrespective of its nature or occurrence).

"Outgoings" means all rates, taxes, assessments, fees and other outgoings and includes land tax, levies, fire insurance premiums, Owners Corporation fees or insurance premiums or other expenses levied in respect of the Property, but excludes any supplementary rates or taxes or other such rates assessment in respect of the Property after the Settlement Date which are the responsibility of the Purchaser.

"Planning Scheme" means the Whitehouse Planning Scheme.

"Property" means the property sold pursuant to this Contract. The terms Land, Site and Property, are used intermittently throughout these Special Conditions; however, they all mean the property sold pursuant to this Contract.

"Property Controls" means all existing and future planning, environmental, building and similar controls relating to the use or development of the Property, including (as applicable), the Planning Scheme and any planning permit.

“Purchaser’s Rights” means:

- (a) Claiming compensation
 - (b) Rescinding or purporting to rescind;
 - (c) Calling the Vendor amend title or bear any cost of doing so;
 - (d) Delaying settlement;
 - (e) Avoiding any of its obligations; and
 - (f) Making any other Claims,
- under or in connection with this Contract.

“Settlement Date” means the date on which the balance of the price must be paid by the Purchaser to the Vendor.

“Vendor’s Agent” means the estate agent or estate agents for the Vendor, if any, whose details are set out in the particulars of sale, or any other party nominated by the Vendor.

“Vendor’s Statement” means a statement made under section 32 of the *Sale of Land Act* 1962 (Vic), a copy of which is attached.

1.2 Interpretation

In this Contract:

1.2.1 a reference to:

- (a) any legislation or legislative provision include any statutory modification or re-enactment of, or legislative provision substituted for, and any statutory instrument issued under, that legislation or legislative provision;
- (b) the singular include the plural and vice versa;
- (c) an individual or person includes a corporation, firm, authority, government or government authority and vice versa;
- (d) any gender includes the other genders;
- (e) a party to this Contract includes that party’s executors, administrators, successors and permitted assigns; and
- (l) a condition, annexure or schedule is a reference to a condition, annexure of schedule of this Contract.

1.2.2 the words “including” or “includes” are not to be construed as words of limitation.

1.2.3 headings are for convenience and reference only and do not affect the meaning or interpretation of this Contract; and

1.2.4 if the whole of any part of a provision of this Contract is invalid or unenforceable, the validity or enforceability of the remaining provisions will not be affected.

1.3 Any obligation on the part of two or more persons under this Contract binds all of them jointly and each of them severally, unless expressed to be only several.

- 1.4 The obligations imposed and the benefits conferred under this Contract on each of the parties are binding upon and endure for the benefit of the respective parties and each of their respective successors in title, legal personal representatives and permitted assigns.
- 1.5 If an act must be done on a specific day, which is not a Business day, the act must be done on the Business Day immediately after that specified day.
- 1.6 If a provision is held to be illegal, invalid, void, voidable or unenforceable, that provision must be read down only to the extent necessary to ensure that is not illegal, invalid, void, voidable or unenforceable.
- 1.7 If it is not possible to read down a provision as required in special conditions 1.6, that provision is severable without affecting the validity or enforceability of the remaining part of that provision of the other provisions in this Contract

2. Acceptance of title

General condition 12.4 is added:

1. Where the purchaser is deemed by section 27(7) of the *Sale of Land Act* 1962 to have given the deposit release authorisation referred to in section 27 (1), the purchaser is also deemed to have accepted title in the absence of any prior express objection to title.

3. Electronic conveyancing

EC

Settlement and lodgement will be conducted electronically in accordance with the *Electronic Conveyancing National Law* and special condition 2 applies, if the box is marked “EC”.

3.1 This special condition has priority over any other provision to the extent of any inconsistency. This special condition applies if the contract of sale specifies, or the parties subsequently agree in writing, that settlement and lodgement of the instruments necessary to record the purchaser as registered proprietor of the land will be conducted electronically in accordance with the *Electronic Conveyancing National Law*.

3.2 A party must immediately give written notice if that party reasonably believes that settlement and lodgement can no longer be conducted electronically.

3.3 Each party must:

- (a) be, or engage a representative who is, a subscriber for the purposes of the *Electronic Conveyancing National Law*,
- (b) ensure that all other persons for whom that party is responsible and who are associated with this transaction are, or engage, a subscriber for the purposes of the *Electronic Conveyancing National Law*, and
- (c) conduct the transaction in accordance with the *Electronic Conveyancing National Law*.

3.4 The vendor must open the Electronic Workspace (“workspace”) as soon as reasonably practicable. The workspace is an electronic address for the service of notices and for written communications for the purposes of any electronic transactions legislation.

3.5 The vendor must nominate a time of the day for locking of the workspace at least 7 days before the due date for settlement.

3.6 Settlement occurs when the workspace records that:

- (a) the exchange of funds or value between financial institutions in accordance with the instructions of the parties has occurred; or
- (b) if there is no exchange of funds or value, the documents necessary to enable the purchaser to become registered proprietor of the land have been accepted for electronic lodgement.

3.7 The parties must do everything reasonably necessary to effect settlement:

- (a) electronically on the next business day, or
- (b) at the option of either party, otherwise than electronically as soon as possible –

if, after the locking of the workspace at the nominated settlement time, settlement in accordance with special condition 2.6 has not occurred by 4.00 pm, or 6.00 pm if the nominated time for settlement is after 4.00 pm.

3.8 Each party must do everything reasonably necessary to assist the other party to trace and identify the recipient of any mistaken payment and to recover the mistaken payment.

3.9 The vendor must before settlement:

(a) deliver any keys, security devices and codes ("keys") to the estate agent named in the contract,

(b) direct the estate agent to give the keys to the purchaser or the purchaser's nominee on notification of settlement by the vendor, the vendor's subscriber or the Electronic Network Operator;

(c) deliver all other physical documents and items (other than the goods sold by the contract) to which the purchaser is entitled at settlement, and any keys if not delivered to the estate agent, to the vendor's subscriber or, if there is no vendor's subscriber, confirm in writing to the purchaser that the vendor holds those documents, items and keys at the vendor's address set out in the contract, and

(d) direct the vendor's subscriber to give (or, if there is no vendor's subscriber, give) all those documents and items, and any such keys, to the purchaser or the purchaser's nominee on notification of settlement by the Electronic Network Operator.

3.10 The vendor must, at least 7 days before the due date for settlement, provide the original of any document required to be prepared by the vendor in accordance with general condition 6.

4. Planning Schemes

The purchaser buys subject to any restrictions imposed by and to the provisions of the Melbourne Metropolitan Planning Scheme and any other Town Planning Acts or Schemes. The Purchaser shall not requisition, object or claim compensation or delay settlement in respect of any restriction or prohibition on the use or development of or any zoning overlay or reservation affecting the property under any Planning Act or scheme or in any legislation or imposed by any authority empowered by legislation to control the use or development of the land.

5. No representations

It is hereby agreed between the parties hereto that there are no conditions, warranties or other terms affecting this sale other than those embodied herein and the purchaser shall not be entitled to rely on any representations made by the vendor or his Agent except such as are made conditions of this contract.

6. Dwelling

The land and buildings (if any) as sold hereby and inspected by the purchaser is sold on the basis of existing improvements thereon and the purchaser shall not make any requisition or claim any compensation for any deficiency or defect in the said improvements as to their suitability for occupation or otherwise including any requisition in relation to the issue or non issue of Building Permits and/or completion of inspections by the relevant authorities in respect of any improvements herein.

7. Deposit

The deposit payable hereunder shall be ten per centum (10%) of the purchase price.

8. Guarantee

If a company purchases the property:

- (a) Any person who signs this contract will be personally responsible to comply with the terms and conditions of this contract; and
- (b) The directors of the company must sign the guarantee attached to this contract and deliver it to the vendor within 7 days of the day of sale.

9.

Payment

The purchaser must pay bank fees on up to six bank cheques at settlement; the vendor must pay the bank fees on any additional bank cheques requested by the vendor.

10. **Land Description**

The Purchaser admits that the land as offered for sale and inspected by him is identical with that described in the title particulars given in the Vendor's Statement and in the Particulars of Sale hereof. The Purchaser shall not make any requisitions or claim any compensation for any alleged misdescription of the land or deficiency in its area or measurements or any patent or latent defects in the land or call upon the Vendor to amend title or bear all or any part of the cost of doing so provided that nothing herein shall release the Vendor from his obligations or affect the rights of the Purchaser pursuant to Section 9AC of the Sale of Land Act, 1962 (as amended) Condition 3 of Table A of the Third Schedule of the Transfer of Land Act, 1958 shall not apply to this Contract.

11. **Default**

Should the Purchaser default in payment of any of the purchase moneys herein then the purchaser will pay penalty interest on such outstanding moneys at the rate of sixteen percent (16%) from the date of such default until such time as the default is remedied. If any provision of this Contract remains to be performed or is capable of having effect after the final settlement date this Contract shall remain in full force and effect notwithstanding completion of the sale and purchase of the land and that provision shall not merge in the instrument of transfer of the land. General condition 26 does not apply to this contract.

11.1 The Purchaser acknowledges that:-

- a. if the Purchaser fails to complete the purchase of the property on the due date under this Contract, the Vendor will or may suffer additional losses and expenses; and
- b. the losses and expenses described in Special Condition 12.1a. are agreed to be reasonably foreseeable and shall be deemed to be "reasonably foreseeable loss" for the purposes of General Condition 25 of this Contract.

11.2 The Purchaser shall keep the Vendor indemnified at all times against all liabilities claims proceedings and penalties whatsoever under the Stamps Act 1958 relating to this Contract, any substitute Contract of Sale and the instrument of transfer of the property or any one or more of them.

11.3 The Purchaser agrees that a reasonably foreseeable loss under this contract includes any one or more of the following:

- a. the cost of obtaining bridging finance to complete the vendor's purchase of another property, including interest, legal costs, duty and other costs of or incidental to such bridging finance;
- b. interest and bank charges payable by the vendor under any existing loan or mortgage on the property hereby sold calculated from the due date of settlement;
- c. any moving and storage expenses incurred by the vendor as and from the due date of settlement of the property hereby sold;
- d. legal costs and expenses of the vendor on a solicitor and own client basis;

e. where the vendor is purchasing another property ("the vendors purchase") – all interest, expenses and legal costs payable to the vendor in respect of the vendor's purchase, arising from or in consequence of the default in payment of any moneys payable under this contract by the purchaser or owing to any breach of or failure by the purchaser to observe any of the terms and conditions of this contract.

f. a rescheduling fee for each delayed settlement in the amount of \$220.00.

12. Existing Services and Utilities

The Purchaser acknowledges that the property is sold and the Purchaser shall take title thereto subject to all existing water, sewerage and drainage, gas and electricity, telephone or other installations, services and utilities (if any). The purchaser shall not make any requisition, objection or claim for compensation or delay settlement in respect of any of the following:

- a. The nature, location availability or non-availability of any such installations, services and utilities;
- b. If any such service is a joint service with any other land or building;
- c. If any such service for any other property or building or any parts or connections therefore pass through the property;
- d. If any sewer or water main or connection passes through in or over the property;
- e. If there is a man hole or vent on the property; or
- f. If because of or arising out of any such installations, services and utilities the property may be subject to or have the benefit of any rights or easements in respect of any such installation service or utility.

13. RATES CERTIFICATES

The Purchaser agrees to provide copies of all certificates obtained by them to complete any adjustments to the Vendor's Representative if requested. The Vendor will not be obliged to provide cheque details until this condition has been complied with.

14. CONDITION OF LAND

The Purchaser acknowledges that the Purchaser has purchased the Land as a result of the Purchaser's own inspection or inquiries and in its present condition and state of repair subject to all faults both latent and patent and except to any extent expressly provided in this Contract the Vendor has not and no person on the Vendor's behalf has made any warranty or representation in relation to those matters.

General Conditions 24.2, 24.5 and 24.6 do not apply to this Contract.

15. STATEMENT OF ADJUSTMENTS

Further to General Condition 15, Adjustments must be prepared on behalf of the Purchaser and provided to the Vendors representative not less than 7 days prior to the due date of settlement and any failure to do so, will cause the Purchaser to pay an administration fee to the Vendors representative of \$150.00 for the delay in receiving the Statement of Adjustments.

The provisions of this Contract shall apply and prevail over any statutory or implied conditions but only to the extent of any inconsistency and to the extent permissible at law.

16. EXTENSION REQUESTS

Should the Purchaser request an extension to any due date for any condition that is enduring for the Purchaser's benefit (excluding settlement date), then the Purchaser must pay the Vendor's Legal Representative a fee of \$110.00 (Including GST) ("Extension Request Fee") for each and every time an extension is requested. This Extension Request Fee must be allowed by the Purchaser to the Vendor in the Statement of Adjustments. The Purchaser acknowledges that the Extension Request Fee is a reasonable pre-estimate of additional legal costs incurred by the Vendor as a result of the Vendor's Legal Representative having to facilitate the extension request.

17. NOMINATION

If the named Purchaser chooses to nominate a substitute or additional Purchaser the named Purchaser shall remain personally liable for the due performance and observance of all the named Purchaser's obligations under this Contract and it shall be a condition precedent to such nominations that:

- (a) If the nominated Purchaser or one of more of them is an incorporated body then the named Purchasers shall deliver a personal guarantee to the Vendor's representative signed by all the directors of the said incorporated body.

(b) Execute any other documents required by the Vendor's solicitor including a new Contract of Sale.

(c) The nominated Purchaser shall reimburse the Vendor \$275.00 for costs incurred by their Solicitor in relation to the nomination.

18. GST Withholding

18.1 Words and expressions defined or used in Subdivision 14-E of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* or in *A New Tax System (Goods and Services Tax) Act 1999 (Cth)* have the same meaning in this special condition unless the context requires otherwise. Words and expressions first used in this special condition and shown in italics and marked with an asterisk are defined or described in at least one of those Acts.

18.2 This special condition 5 applies if the purchaser is required to pay the Commissioner an **amount* in accordance with section 14-250 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* because the property is **new residential premises* or *"potential residential land"* in either case falling within the parameters of that section, and also if the sale attracts the operation of section 14-255 of the legislation. Nothing in this special condition 5 is to be taken as relieving the vendor from compliance with section 14-255.

18.3 The amount is to be deducted from the vendor's entitlement to the contract **consideration* and is then taken to be paid to the vendor, whether or not the vendor provides the purchaser with a GST withholding notice in accordance with section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*. The vendor must pay to the purchaser at settlement such part of the amount as is represented by non-monetary consideration.

18.4 The purchaser must: engage a legal practitioner or conveyancer ("representative") to conduct all the legal aspects of settlement, including the performance of the purchaser's obligations under the legislation and this special condition; and ensure that the representative does so.

18.5 The terms of the representative's engagement are taken to include instructions to have regard to the vendor's interests relating to the payment of the amount to the Commissioner and instructions that the representative must:

- (a) pay, or ensure payment of, the amount to the Commissioner in the manner required by the Commissioner and as soon as reasonably and practicably possible, from moneys under the control or direction of the representative in accordance with this special condition on settlement of the sale of the property;
- (b) promptly provide the vendor with evidence of payment, including any notification or other document provided by the purchaser to the Commissioner relating to payment; and
- (c) otherwise comply, or ensure compliance, with this special condition; despite:
- (d) any contrary instructions, other than from both the purchaser and the vendor; and
- (e) any other provision in this contract to the contrary.

18.6 The representative is taken to have complied with the requirements of special condition 5.5 if:

- (a) settlement is conducted through the electronic conveyancing system operated by Property Exchange Australia Ltd or any other electronic conveyancing system agreed by the parties; and
- (b) the amount is included in the settlement statement requiring payment to the Commissioner in respect of this transaction.

18.7 The purchaser may at settlement give the vendor a bank cheque for the amount in accordance with section 16-30 (3) of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*, but only if:

- (a) so agreed by the vendor in writing; and
- (b) the settlement is not conducted through an electronic settlement system described in special condition 5.6.

However, if the purchaser gives the bank cheque in accordance with this special condition 5.7 the vendor must:

- (c) immediately after settlement provide the bank cheque to the Commissioner to pay the amount in relation to the supply; and
- (d) give the purchaser a receipt for the bank cheque which identifies the transaction and includes particulars of the bank cheque, at the same time the purchaser gives the vendor the bank cheque.

18.8 The vendor must provide the purchaser with a GST withholding notice in accordance with section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* at least 14 days before the due date for settlement.

18.9 A party must provide the other party with such information as the other party requires to:

- (a) decide if an amount is required to be paid or the quantum of it, or
- (b) comply with the purchaser's obligation to pay the amount,

in accordance with section 14-250 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*. The information must be provided within 5 business days of a written request. The party providing the information warrants that it is true and correct.

18.10 The vendor warrants that:

- (a) at settlement, the property is not new residential premises or potential residential land in either case falling within the parameters of section 14-250 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* if the vendor gives the purchaser a written notice under section 14-255 to the effect that the purchaser will not be required to make a payment under section 14-250 in respect of the supply, or fails to give a written notice as required by and within the time specified in section 14-255; and
- (b) the amount described in a written notice given by the vendor to the purchaser under section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* is the correct amount required to be paid under section 14-250 of the legislation.

18.11 The purchaser is responsible for any penalties or interest payable to the Commissioner on account of non-payment or late payment of the amount, except to the extent that:

- (a) the penalties or interest arise from the vendor's failure, including breach of a warranty in special condition 5.10; or
- (b) the purchaser's reasonable belief that the property is neither new residential premises nor potential residential land requiring the purchaser to pay an amount to the Commissioner in accordance with section 14-250 (1) of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*.

The vendor is responsible for any penalties or interest payable to the Commissioner on account of non-payment or late payment of the amount if either exception applies.

18.12 This special condition will not merge on settlement.

19. Swimming Pool / Spa

In the event that the property includes a swimming pool or spa, the Purchaser hereby acknowledges by the signing of this contract that the swimming pool or spa located on the property may not have fencing or security that complies with all current legislative requirements. The Purchaser further acknowledges that, notwithstanding anything to the contrary contained herein, the Purchaser cannot terminate this contract for any reason directly or indirectly related to or associated with the lack of swimming pool fencing or swimming pool securing fencing or security that fails to comply with current legislative requirements, nor will the Purchaser require the Vendor to comply with any requirement, and the Purchaser may not seek any compensation from the Vendor for any non-compliance. Prior to the signing of this contract, the Purchaser must complete its own due diligence regarding the swimming pool or spa located on the property and must be satisfied that the current legislative requirements are complied with.

SECTION 32

STATEMENT

PURSUANT TO DIVISION 2 OF PART II
SECTION 32 OF THE SALE OF LAND ACT 1962 (VIC)

Vendor:	THOMAS EMPIRE PTY LTD
Property:	70A Tyquin Street LAVERTON VIC 3028

VENDORS REPRESENTATIVE

Ascot Solicitors

PO Box 303
DEER PARK VIC 3023

Tel: 03 8390 1711
Email: nevin@ascotsolicitors.com.au

Ref: NV-24/10276

SECTION 32 STATEMENT
70A TYQUIN STREET LAVERTON VIC 3028

32A FINANCIAL MATTERS

Information concerning any rates, taxes, charges or other similar outgoings AND any interest payable on any part of them is contained in the attached certificate/s and as follows-

Their total does not exceed \$6,000.00.

Any further amounts (including any proposed Owners Corporation Levy) for which the Purchaser may become liable as a consequence of the purchase of the property are as follows:- None to the Vendors knowledge

At settlement the rates will be adjusted between the parties, so that they each bear the proportion of rates applicable to their respective periods of occupancy in the property.

32B INSURANCE

- (a) Where the Contract does not provide for the land to remain at the risk of the Vendor, particulars of any policy of insurance maintained by the Vendor in respect of damage to or destruction of the land are as follows: - Not Applicable

32C LAND USE

(a) **RESTRICTIONS**

Information concerning any easement, covenant or similar restriction affecting the land (whether registered or unregistered) is as follows:-

- Easements affecting the land are as set out in the attached copies of title.
- Covenants affecting the land are as set out in the attached copies of title.
- Other restrictions affecting the land are as attached.
- Particulars of any existing failure to comply with the terms of such easement, covenant and/or restriction are as follows:-

To the best of the Vendor's knowledge there is no existing failure to comply with the terms of any easement, covenant or similar restriction affecting the land. The Purchaser should note that there may be sewers, drains, water pipes, underground and/or overhead electricity cables, underground and/or overhead telephone cables and underground gas pipes laid outside any registered easements and which are not registered or required to be registered against the Certificate of Title.

(b) **BUSHFIRE**

This land is not in a designated bushfire- prone area within the meaning of the regulations made under the *Building Act 1993*.

(c) **ROAD ACCESS**

There is access to the Property by Road.

SECTION 32 STATEMENT
70A TYQUIN STREET LAVERTON VIC 3028

(d) PLANNING

Planning Scheme: Hobsons Bay Planning Scheme
Responsible Authority: Hobsons Bay City Council
Zoning: See attached
Planning Overlay/s: See attached

32D NOTICES

The Vendor is not aware of any Notices, Declarations, Property Management Plans, Reports, Recommendations or Orders in respect of the land issued by a Government Department or Public Authority or any approved proposal directly and currently affecting the land however the Vendor has no means of knowing all decisions of the Government and other authorities unless such decisions have been communicated to the Vendor.

32E BUILDING PERMITS

Particulars of any Building Permit issued under the *Building Act 1993* during the past seven years (where there is a residence on the land):-

Is contained in the attached Certificate/s.

32F OWNERS CORPORATION

The Land is NOT affected by an Owners Corporation within the meaning of the *Owners Corporation Act 2006*.

32G GROWTH AREAS INFRASTRUCTURE CONTRIBUTION (GAIC)

- (1) The land, in accordance with a work-in-kind agreement (within the meaning of Part 9B of the *Planning and Environment Act 1987* is NOT –
- land that is to be transferred under the agreement.
 - land on which works are to be carried out under the agreement (other than Crown land).
 - land in respect of which a GAIC is imposed

32H SERVICES

Service	Status
Electricity supply	Connected
Gas supply	Connected
Water supply	Connected
Sewerage	Connected
Telephone services	Connected

SECTION 32 STATEMENT
70A TYQUIN STREET LAVERTON VIC 3028

Connected indicates that the service is provided by an authority and operating on the day of sale. The Purchaser should be aware that the Vendor may terminate any account with a service provider before settlement, and the purchaser may need to have the service reconnected.

32I TITLE

Attached are the following document/s concerning Title:

A copy of the Register Search Statement/s and the document/s, or part of the document/s, referred to as the diagram location in the Register Search Statement/s that identifies the land and its location.

DATE OF THIS STATEMENT

12

/

09

/20

24

Name of the Vendor

THOMAS EMPIRE PTY LTD

Signature/s of the Vendor

x



The Purchaser acknowledges being given a duplicate of this statement signed by the Vendor before the Purchaser signed any contract.

DATE OF THIS ACKNOWLEDGMENT

03/10

/

/20

24

Name of the Purchaser

Spandana Ranga

Signature/s of the Purchaser

x



REGISTER SEARCH STATEMENT (Title Search) Transfer of Land Act 1958

Page 1 of 2

VOLUME 12186 FOLIO 267

Security no : 124116182406E
Produced 27/06/2024 03:42 PM

LAND DESCRIPTION

Lot 2 on Plan of Subdivision 830422T.

PARENT TITLES :

Volume 08836 Folio 131 to Volume 08836 Folio 132

Created by instrument PS830422T 10/02/2020

REGISTERED PROPRIETOR

Estate Fee Simple

Sole Proprietor

THOMAS EMPIRE PTY LTD of UNIT 1 34 MAY STREET ALTONA NORTH VIC 3025

AU101219M 02/03/2021

ENCUMBRANCES, CAVEATS AND NOTICES

MORTGAGE AU101221B 02/03/2021

THE TRUST COMPANY (AUSTRALIA) LTD

CAVEAT AX013630W 05/07/2023

Caveator

DAVID IAN MCLAUCHLAN

Grounds of Claim

AGREEMENT WITH THE FOLLOWING PARTIES AND DATE.

Parties

THE REGISTERED PROPRIETOR(S)

Date

04/07/2023

Estate or Interest

FREEHOLD ESTATE

Prohibition

ABSOLUTELY

Lodged by

AMS IVANHOE LAWYERS

Notices to

AMS IVANHOE LAWYERS of 176 UPPER HEIDELBERG ROAD IVANHOE VIC 3079

Any encumbrances created by Section 98 Transfer of Land Act 1958 or Section 24 Subdivision Act 1988 and any other encumbrances shown or entered on the plan set out under DIAGRAM LOCATION below.

AGREEMENT Section 173 Planning and Environment Act 1987

AS563839R 26/09/2019

DIAGRAM LOCATION

SEE PS830422T FOR FURTHER DETAILS AND BOUNDARIES

ACTIVITY IN THE LAST 125 DAYS

NIL

-----END OF REGISTER SEARCH STATEMENT-----

REGISTER SEARCH STATEMENT (Title Search) Transfer of Land Act 1958

Page 2 of 2

Additional information: (not part of the Register Search Statement)

Street Address: 70A TYQUIN STREET LAVERTON VIC 3028

ADMINISTRATIVE NOTICES

NIL

eCT Control 21784Q MCCARTHY DURIE LAWYERS
Effective from 02/03/2021

OWNERS CORPORATIONS

The land in this folio is affected by
OWNERS CORPORATION 1 PLAN NO. PS830422T

DOCUMENT END

Imaged Document Cover Sheet

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Document Type	Plan
Document Identification	PS830422T
Number of Pages (excluding this cover sheet)	2
Document Assembled	27/06/2024 15:42

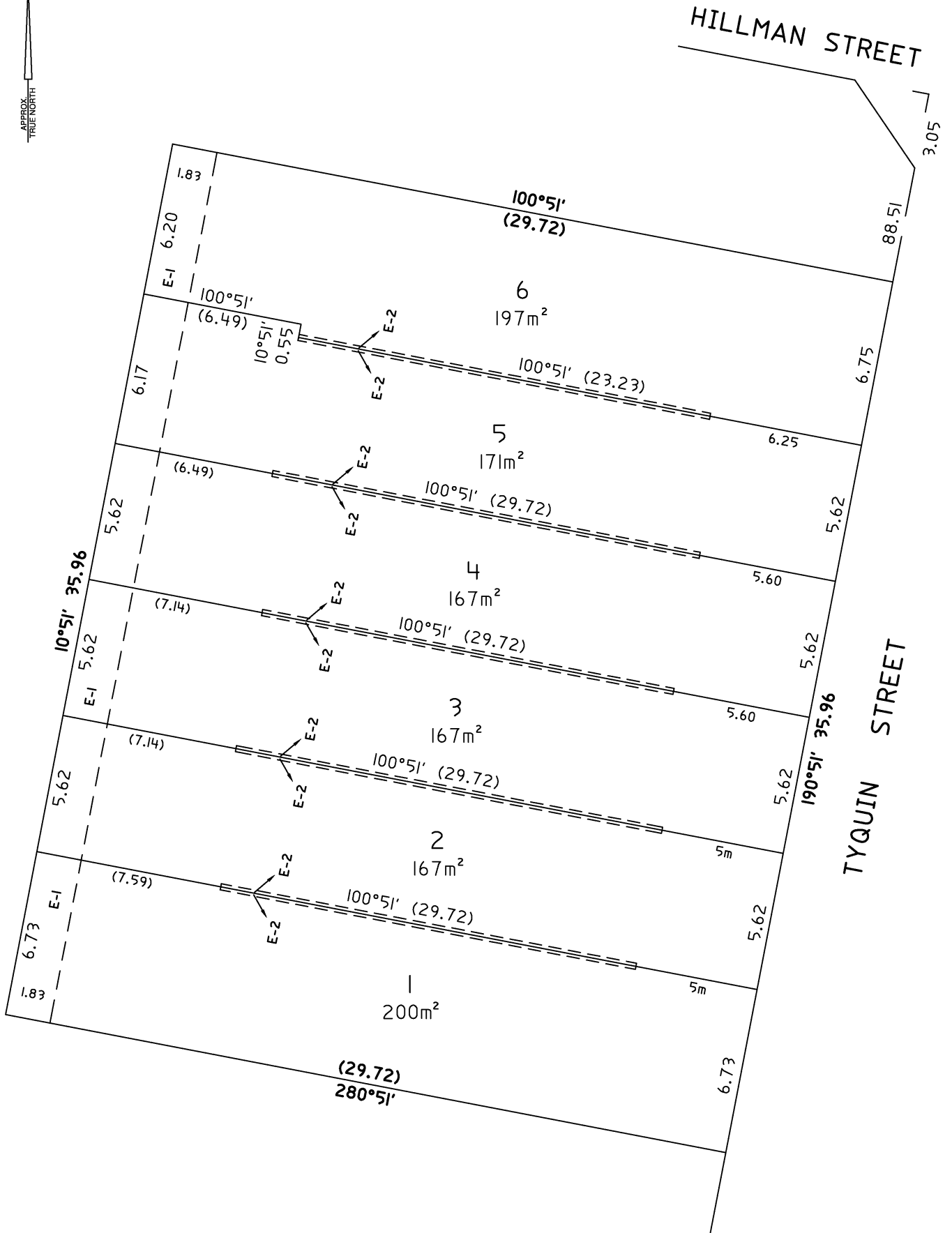
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PLAN OF SUBDIVISION			EDITION 1	PS 830422T
LOCATION OF LAND PARISH : Truganina SECTION : A CROWN ALLOTMENT : 4 (Part) CROWN PORTION : - TITLE REFERENCE : Vol. 8836 Fol. 131 & 132 LAST PLAN REFERENCE : LP87705 Lots 61 & 62 POSTAL ADDRESS : 68 & 70 Tyquin Street (At time of subdivision) Laverton. 3028 MGA20 CO-ORDINATES (of approx centre of land in plan) E 304570 ZONE:55 N 5808220 GDA 20			Council Name: Hobsons Bay City Council Council Reference Number: CA1942458 Planning Permit Reference: PA1942457 SPEAR Reference Number: S139535B Certification This plan is certified under section 6 of the Subdivision Act 1988 Public Open Space A requirement for public open space under section 18 of the Subdivision Act 1988 has not been made Digitally signed by: Sally Walker for Hobsons Bay City Council on 21/10/2019 Statement of Compliance issued: 03/12/2019	
VESTING OF ROADS AND/OR RESERVES			NOTATIONS	
IDENTIFIER	COUNCIL/BODY/PERSON		LOTS IN THIS PLAN MAY BE AFFECTED BY ONE OR MORE OWNERS CORPORATIONS FOR DETAILS OF ANY OWNERS CORPORATIONS INCLUDING PURPOSE, RESPONSIBILITY, ENTITLEMENT & LIABILITY SEE OWNERS CORPORATION SEARCH REPORT, OWNERS CORPORATION ADDITIONAL INFORMATION AND IF APPLICABLE, OWNERS CORPORATION RULES	
NIL	NIL			
NOTATIONS				
DEPTH LIMITATION: 45.72 Metres				
SURVEY: THIS PLAN IS BASED ON SURVEY. STAGING: THIS IS NOT A STAGED SUBDIVISION. PLANNING PERMIT NO. THIS SURVEY HAS BEEN CONNECTED TO PERMANENT MARKS NO(S). IN PROCLAIMED SURVEY AREA NO. THIS IS A SPEAR PLAN				
EASEMENT INFORMATION				
LEGEND: A - Appurtenant Easement E - Encumbering Easement R - Encumbering Easement (Road)				
IMPLIED RIGHTS PURSUANT TO SECTION 12(2) OF THE SUBDIVISION ACT 1988 APPLY TO ALL THE LAND IN THIS PLAN				
Easement Reference	Purpose	Width (Metres)	Origin	Land Benefited/In Favour Of
E-1	Drainage & Sewerage	1.83	LP87705	All lots on LP87705
E-2	Party Wall	0.125	This plan	Relevant abutting lots on this plan
 Licensed Land Surveyors Development Consultants Town Planners Tel 9370 9925 Fax 9372 8796 PO Box 148 Ascot Vale Vic 3032 info@anthonyfordsurveying.com.au www.anthonyfordsurveying.com.au		SURVEYORS REF: 4637		ORIGINAL SHEET SIZE: A3
		Digitally signed by: Anthony Ian Ford, Licensed Surveyor, Surveyor's Plan Version (03), 17/10/2019, SPEAR Ref: S139535B		SHEET 1 OF 2
		PLAN REGISTERED TIME: 11:22 AM DATE: 10 / 2 / 2020 Laura Campbell Assistant Registrar of Titles		

PS 830422T





Department of Environment, Land, Water & Planning

Electronic Instrument Statement

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The Victorian Government acknowledges the Traditional Owners of Victoria and pays respects to their ongoing connection to their Country, History and Culture. The Victorian Government extends this respect to their Elders, past, present and emerging.

Produced 27/06/2024 03:42:27 PM

Status	Registered	Dealing Number	AS563839R
Date and Time Lodged	26/09/2019 10:03:55 AM		

Lodger Details

Lodger Code	21191U
Name	LOGDEX
Address	
Lodger Box	
Phone	
Email	
Reference	2192934 HBCC (s173 a

APPLICATION TO RECORD AN INSTRUMENT

Jurisdiction	VICTORIA
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Privacy Collection Statement

The information in this form is collected under statutory authority and used for the purpose of maintaining publicly searchable registers and indexes.

Estate and/or Interest

FEE SIMPLE

Land Title Reference

8836/131
8836/132

Instrument and/or legislation

RECORD - AGREEMENT - SECTION 173
Planning & Environment Act - section 173

Applicant(s)

Name	HOBSONS BAY CITY COUNCIL
Address	
Street Number	115
Street Name	CIVIC
Street Type	PARADE
Locality	ALTONA
State	VIC
Postcode	3018



Department of Environment, Land, Water & Planning

Electronic Instrument Statement

Additional Details

Refer Image Instrument

The applicant requests the recording of this Instrument in the Register.

Execution

1. The Certifier has taken reasonable steps to verify the identity of the applicant or his, her or its administrator or attorney.
2. The Certifier holds a properly completed Client Authorisation for the Conveyancing Transaction including this Registry Instrument or Document.
3. The Certifier has retained the evidence supporting this Registry Instrument or Document.
4. The Certifier has taken reasonable steps to ensure that this Registry Instrument or Document is correct and compliant with relevant legislation and any Prescribed Requirement.

Executed on behalf of	HOBSONS BAY CITY COUNCIL
Signer Name	DONNA SMYTHE
Signer Organisation	LODGE PTY. LTD.
Signer Role	CONVEYANCING PRACTICE
Execution Date	26 SEPTEMBER 2019

File Notes:

NIL

This is a representation of the digitally signed Electronic Instrument or Document certified by Land Use Victoria.

Statement End.

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Document Type	Instrument
Document Identification	AS563839R
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AGREEMENT

between

HOBSONS BAY CITY COUNCIL

and

**ANDREW REJEEV MANOKARAN, LLOYD EDWARD
THOMAS, THOMAS EMPIRE PTY LTD, ANDREW
MANOKARAN and MARQUETTA MANOKARAN**

Gary Testro
Lawyer
1 Scenic Place
Maribyrnong Vic 3032
P:9317 7890
F:9317 7859
M:0402 009 561
E: gtestro@netspace.net.au

Liability limited by a scheme approved
under Professional Standards Legislation

THIS AGREEMENT is made the date shown in Item 1 of the Schedule.

BETWEEN: HOBSONS BAY CITY COUNCIL of 115 Civic (the "Council")
Parade, Altona, Victoria, 3018

AND: The person named in Item 2 of the
Schedule (the "Owner")

RECITALS

- A.** The Owner is the registered proprietor (or entitled to be so) and, for the purposes of the Act, the owner of the land being the land described in Item 3 of the Schedule.
- B.** The Council is the planning authority and responsible authority under the Act for the administration and enforcement of the Hobsons Bay Planning Scheme, which applies to the Land.
- C.** On 25 September 2017, Permit No. PA1635075 was issued allowing the "*Construction of two or more dwellings*" on the Land. On 6 December 2017, that Permit was amended by the deletion of part of a Condition and was re-issued as Permit No. PA1635075A. On 15 August 2019, the Permit was extended as to the dates for commencement and completion. On 28 May 2019, Permit No. PA1942457 (the "Subdivision Permit") was issued allowing the subdivision of the Land into six lots (on each of which lots one of the proposed new dwellings is intended to be built). To facilitate the wish of the Owner to subdivide the Land ahead of completion of the proposed new dwellings and despite the ninth of the Permit Notes endorsed on the Permit, Condition 2 of the Subdivision Permit requires that an agreement of the type described in section 173 of the Act be entered into in relation to matters provided for in this Agreement.
- D.** The parties enter this Agreement:-
 - (a) to give effect to the arrangement made between the Owner and the Council in relation to the Permit and the Subdivision Permit and to facilitate the Owner's wish to transpose the sequence of building works and land subdivision;
 - (b) to provide a means of compliance with the Subdivision Permit;

- (c) to achieve or advance the objectives of planning in Victoria and the objectives of the Hobsons Bay Planning Scheme in respect to the Land and the vicinity of it; and
- (d) amongst other things to formalise an understanding reached between the parties regarding the use and development of the Land.

THE PARTIES AGREE AND COVENANT AS FOLLOWS:-

Part 1. - Introduction and Interpretation

1.1 Operation

Without limiting any operation or effect which this Agreement otherwise has, the Council and the Owner acknowledge that this Agreement:-

- 1.1.1 is made under Division 2 Part 9 (and, in particular, Section 173) of the Act, with the intent that the burden of the Owner's covenants runs with the Land; and
- 1.1.2 subject to Clause 1.5, operates irrespective of whether the Owner makes use of the permit referred to in Recital C.

1.2 Definitions

In this Agreement, unless the contrary intention appears:-

"Act" means the Planning and Environment Act 1987;

"Development" when used as a noun means the use or development of the Land;

"Hobsons Bay Planning Scheme" includes any planning control in the form of or similar to a planning scheme and being a successor to the Hobsons Bay Planning Scheme;

"Land" means the Land described in Recital A;

"Lot 1" and "Lot 2" and "Lot 3" and "Lot 4" and "Lot 5" and "Lot 6" respectively means any part of the Land constituted in whole or in part by that portion described as Lot 1 or Lot 2 or Lot 3 or Lot 4 or Lot 5 or Lot 6 (as the case may be) in the document designated PS830422T, being the form of Plan of Subdivision by Licensed Surveyor, Anthony Ford, identified as "Surveyors ref: 4637" "Version 03" lodged with the Council via SPEAR and endorsed to the Subdivision Permit on 29 May 2019.

"Obligation" includes covenant, liability or entitlement for a person to do something;

"Permit" means:-

- 1.2.1 the town planning permit No. PA1635075A described in Recital C and in Item 4 of the Schedule; and

- 1.2.2 any variation of that permit; and
- 1.2.3 any later permit which the Council specifies as falling within this definition;

"Register" means 'Register' and "Land Registry" means 'Office of Titles' within the meaning of the *Transfer of Land Act 1958*.

1.3 Interpretation

In this Agreement, unless the contrary intention appears:-

- 1.3.1 a word importing the singular includes the plural, and vice versa;
- 1.3.2 a word importing a gender includes any other gender;
- 1.3.3 where a word or phrase has a particular meaning, other grammatical forms of that word or phrase have a corresponding meaning;
- 1.3.4 a covenant or obligation on the part of two or more persons binds them jointly and severally;
- 1.3.5 a reference to the "Council" includes its successors and assigns (including its successors as responsible authority under the Act);
- 1.3.6 subject to Clause 3.5, a reference to the "Owner" includes its successors, assigns and transferees in all respects to the whole or any part of the Land and, without limiting the scope of the preceding words, also includes a mortgagee which exercises a power of sale or foreclosure or enters into possession of the whole or any part of the Land;
- 1.3.7 the word "Owner" (if the Owner holds the Land in a trust capacity) includes the beneficiaries of the trust in relation to which it holds that Land. Where such a trust relationship exists, the Owner in executing this Agreement does so intending to assume not only personal liability but also to bind the trust for which it acts as trustee;
- 1.3.8 a reference to an Act of Parliament, a legislative enactment or a subordinate instrument or any provision in any of them is a reference to that Act, enactment, instrument or provision as amended, re-enacted or re-made (with or without modification) from time to time or a corresponding future Act, enactment, instrument or provision;
- 1.3.9 headings are for guidance only and do not affect the interpretation of this Agreement; and
- 1.3.10 a reference to a person by way of that person's position with the Council includes a person:-
 - 1.3.10.1 authorised to carry out the powers, duties and functions of that position at the Council;
 - 1.3.10.2 acting in that capacity; or

1.3.10.3 if that position in the Council ceases to exist, any person exercising any power, duty or function of the previous position.

1.4 Proper Law

This Agreement is governed by, and the Owner submits to the jurisdiction of, the laws of the State of Victoria.

1.5 Commencement

This Agreement begins immediately upon execution by the parties.

1.6 Other Documents

This Agreement is to be read in conjunction with the Permit and any plans or other documents submitted to and approved already or in the future by the Council in relation to the Permit and the Development.

1.7 Ending of Agreement

1.7.1 This Agreement will end:

1.7.1.1 when the Owner has completed and complied with all of its obligations under this Agreement; or

1.7.1.2 otherwise, in accordance with the Act.

1.7.2 Despite the fact that by virtue of Clauses 1.1, 3.1 or 3.5 or otherwise another person may become liable for the obligations of the Owner under this Agreement, the person whose name is detailed in Item 2 of the Schedule does not cease to be liable to comply with Clauses 2.4, 3.7 and 3.9 of this Agreement until that compliance has been discharged by performance of the obligation or by specific discharge by the Council.

1.7.3 The Owner must, when requested to do so, pay to the Council the Council's costs and disbursements in relation to any amendment or ending of this Agreement or any part of it in relation to the Land or any part of it (including any Application in that regard lodged with the Land Registry).

1.8 Termination in part

Where the Land is subdivided or at any time comprised in more than one lot or one or more lots or reserves, the Council may, in its discretion and by notice in writing to the owner of a lot or reserve, release that lot or reserve from the application of this Agreement, and the Agreement will immediately end in relation to such lot or reserve and after that only operate in relation to the balance of the Land.

1.9 Reading Down and Severability

If a provision of this Agreement is void, or voidable by a party, unenforceable or illegal, but would not be so if read down or severed from the Agreement, it must be read down or severed accordingly.

1.10 Subdivision Act

This Agreement is not to be regarded as an agreement for the purposes of Section 21 of the Subdivision Act 1988.

Part 2. - Owner's Obligations

2.1 Notification

Without affecting the scope of Clause 2.5, the Owner must disclose the existence and nature of this Agreement to any person proposing to own, occupy or use the building allowed by the Permit or the Land prior to that person so owning, occupying or using the building or Land.

2.2 Charge over Land

Until this Agreement is recorded pursuant to Clause 3.7, the Owner hereby charges in favour of the Council all the Owner's estate and interest legal and equitable in the Land to the extent of the obligations imposed pursuant to this Agreement and the amount of any moneys which may be payable by the Owner to the Council under this Agreement. However, this does not prevent the Owner from mortgaging by way of registered mortgage or otherwise the Land or any part of it for the purpose of raising funds to facilitate the development of the Land. Such charge comes to an end upon the recording of this Agreement pursuant to Clause 3.7.

2.3 Payment of Interest

2.3.1 If the Owner fails to pay any moneys due under this Agreement within 14 days of the money becoming due or of a demand being made on the Owner by the Council to do so (whichever is appropriate), the Owner must pay to the Council interest from the relevant date until the date when the money is paid, such interest being:-

2.3.1.1 at the rate from time to time as the Council may be authorised by legislation to fix for interest on unpaid rates, charges and moneys; or

2.3.1.2 if Clause 2.3.1.1 is not applicable then at a rate of 2% higher than the rate from time to time fixed under Section 2 of the Penalty Interest Rates Act 1983.

2.3.2 Any payment made under this Agreement will be applied firstly towards the interest and, secondly, towards the principal sum.

2.4 Land Registry

No Plan of Subdivision of the Land or any part of it or Instrument of Transfer of the Land or any part of it or mortgage or caveat relating to it or Plan of Consolidation affecting the Land may be lodged at the Land Registry for registration or approval until this Section 173 Agreement and the Section 181 Memorandum have been lodged by or on behalf of the Council and entered on the Certificate of Title to the Land.

2.5 Disclosure of Agreement

The Owner must not sell, transfer, dispose of, assign, mortgage or otherwise part with possession of the Land or any part of it without first disclosing to its successors the existence and nature of this Agreement.

2.6 Default by the Owner

- 2.6.1 If the Owner fails to comply with any of the provisions in this Agreement, the Manager Planning Building and Health Services of the Council may cause to be served on the Owner a notice in writing specifying the default and the Remedial Works required.
- 2.6.2 If the default continues for 60 days after the service of that notice, the Council may by its staff, agents and contractors enter on to the Land and cause the Remedial Works to be carried out.
- 2.6.3 Prior to carrying out the Remedial Works, the Council may make a demand on the Owner for the estimated costs of doing those Remedial Works and the Owner must pay to the Council that estimated amount within 14 days of that demand.
- 2.6.4 As soon as practicable after the completion of the Remedial Works, the Manager Planning Building and Health Services will certify the actual costs of them to the Council and those actual costs or the difference between the actual costs and any estimated costs paid to the Council under this clause must be immediately paid by the Owner to the Council or by the Council to the Owner (as the case may require).
- 2.6.5 In Clause 2.6, "Remedial Works" means the works, actions or omissions which the Manager Planning Building and Health Services considers to be reasonably necessary to achieve compliance with a particular and specified provision in this Agreement in relation to which that Manager has formed the opinion that there is a non-compliance.

2.7 Subdivision and Development

- 2.7.1 If subdivision of the Land occurs (whether or not pursuant to the plan of subdivision referred to in the definition of Lot 1 and Lot 2 and Lot 3 and

Lot 4 and Lot 5 and Lot 6 in Clause 1.2) prior to the substantial commencement and completion of all of the proposed new dwellings the subject of the Permit, the Land must not be developed for a dwelling except:

- 2.7.1.1 by the erection of the dwellings and other works shown in the Endorsed Plans (or any minor variation of those plans allowed by the Council);
 - 2.7.1.2 by complying with the requirements detailed in Conditions 1-20 of the Permit (as if those conditions appeared as clauses in this section 173 Agreement); and
 - 2.7.1.3 by applying for, obtaining and complying with all necessary town planning permits and other permits, consents and approvals necessary to enable each of such dwellings to be erected on a single lot of the size and location of Lot 1 and Lot 2 and Lot 3 and Lot 4 and Lot 5 and Lot 6.
- 2.7.2 The Owner must not allow the Land to be developed in a way which is not in compliance with Clause 2.7.1.
- 2.7.3 The buildings and works referred to in Clause 2.7.1 must be completed within 24 months from the date of this Agreement or such further time as the Council may allow.
- 2.7.4 A reference in Clause 2.7 to the Permit or the Endorsed Plans is a reference to the Permit and its Endorsed Plans in the form in which they exist at the later of:
- 2.7.4.1 the date of this Agreement; or
 - 2.7.4.2 when first endorsed to the Permit.
- 2.7.5 Clause 2.7 ceases operation 10 years after the Council certifies that the buildings and works the subject of Clause 2.7.1 have been completed in accordance with the Permit.
- 2.7.6 For the purposes of Clause 2.7, "Endorsed Plans" means the plans endorsed to the Permit. For the purposes of Clause 2.7.4, those plans are 7 sheets of site, floor, roof, elevations and landscape plans and materials and finishes schedule endorsed to the Permit on 28 February 2018.

2.8 Implementing an obligation

Where this Agreement imposes an obligation on the Owner (whether or not that obligation is expressed by requiring the Owner to ensure that something is done or that something occurs):

- 2.8.1 The Owner must (in accordance with approved plans and to the reasonable satisfaction of the Council; preparing all relevant documentation, paying all fees and obtaining all necessary permits, consents and approvals) do whatever is necessary or appropriate to effect the happening, achieve the relevant outcome and carry out the obligation;
- 2.8.2 Those matters must be undertaken at the cost and expense of the Owner unless the Agreement specifically states that they are to be at the cost or expense of a person (whether or not specified) other than the Owner; and
- 2.8.3 If no time is specified for the occurrence of and giving effect to the obligation, it must take place within a reasonable time after the date of this Agreement unless a later date has been specified by the Council.

Part 3. – General

3.1 Obligation to run with the Land

An obligation imposed on the Owner takes effect as a covenant which is annexed to and runs at law and equity with the Land and binds the Owner, its successors, assigns and transferees, and the registered proprietor for the time being of the whole or any part of the Land.

3.2 Owner's Authorisation to Council

- 3.2.1 For better securing compliance with this Agreement, the Owner:-
 - 3.2.1.1 appoints the Council as its lawful attorney to do everything the Owner is capable of doing for the purposes of giving effect to this Agreement or necessary to give effect to any of the Owner's obligations under this Agreement and authorises the Council to do so and will ratify whatever the Council may lawfully do or cause to be done using this Power of Attorney; and
 - 3.2.1.2 irrevocably licenses the Council and its staff, agents and contractors to enter upon any part of the Land for the purpose of giving effect to this Agreement.
- 3.2.2 The operation of Clause 3.2.1 is suspended until or unless there has been default in compliance with Clauses 2.1, 2.3, 2.4, 2.5, 2.6, 2.7, 2.8, 3.5, 3.6, 3.7, 3.9 or 3.10 for 30 days after service of a notice of such default.

3.3 Owner's Warranty

The Owner warrants that:-

- 3.3.1 it is the registered proprietor (or entitled to be so) of the Land;
- 3.3.2 there are no mortgages, liens, charges or other encumbrances affecting the Land which are not disclosed by the usual searches;
- 3.3.3 it has not granted any option or entered into any contract of sale in relation to the Land or any part of it which option or contract is still effective except for sales as detailed in writing by the Owner to the Council before the date of this Agreement; and
- 3.3.4 (if the land is affected by a mortgage or caveat) the mortgagee or caveator (as the case may be) of the Land consents to the Owner entering into this Agreement and the Agreement being recorded on the title to the Land.

3.4 General Acknowledgment

The Council and the Owner expressly acknowledge that any obligation imposed upon the Council under this Agreement does not fetter the future exercise of any statutory discretion by the Council, whether in relation to the Permit or otherwise, and the provisions of this Agreement must be read accordingly.

3.5 Extended Obligation

- 3.5.1 The obligation imposed upon and assumed by the Owner is also binding on its successors as if each of those successors had separately executed this Agreement in addition to the person specified in Item 2 of the Schedule.
- 3.5.2 Without limiting the operation or effect which this Agreement has apart from this sub-clause, the Owner must ensure that its successors:-
 - 3.5.2.1 give effect to and do all acts and sign all documents as to require them to give effect of this Agreement; and
 - 3.5.2.2 execute a Deed agreeing to be bound by the terms of this Agreement and, when that is done, this Agreement will continue as if executed by those successors as well as by the parties actually executing it and as if the Successors' names appeared in each place in which the name of the Owner appears in addition to the name of the Owner.
- 3.5.3 The obligation imposed on the Owner by Clause 3.5.2 is suspended for such time as there appears a memorandum of this Agreement in the Register at the Land Registry.

3.6 Further Documents

The Council and the Owner will do all things, and prepare and sign all further documents, reasonably necessary to give effect to this Agreement and to ensure that this Agreement is fully carried out.

3.7 Recording

Without limiting the scope and generality of Clause 3.6, the Owner must do all things necessary to enable the Council to record this Agreement with the Registrar of Titles in accordance with Section 181 of the Act.

3.8 Notice

Any notice or document under this Agreement may be served on the Council or the Owner by being left at or posted by prepaid letter addressed to the person at its address stated at the commencement of this Agreement (or any other address which is notified to all parties from time to time) and is conclusively regarded as having been served at the expiration of 48 hours from the time of posting.

3.9 Consent of Mortgagee and Caveator

If the Land is affected by a mortgage or a caveat at the time of execution of this Agreement or prior to the recording of the Agreement on the title to the Land, the Owner must ensure that the mortgagee or caveator (as the case may be) as soon as possible (but not later than 14 days after the Owner has executed this Agreement) endorses on this Agreement its consent to the Agreement being made and being recorded at the Land Registry in accordance with Clause 3.7.

3.10 GST

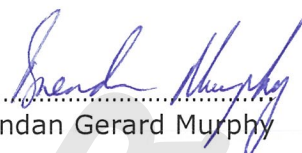
The Owner must pay any GST payable in respect to this Agreement or anything done in relation to it and must indemnify the Council against any such GST.

3.11 Variation of Land

This Agreement will cease to bind any part of the Land of which the Council becomes the Owner.

EXECUTED AS A DEED

EXECUTED BY HOBSONS BAY CITY COUNCIL by being **SIGNED SEALED AND DELIVERED** by its Manager Planning Building and Health Services **BRENDAN GERARD MURPHY**, as the delegate of and on behalf of the Council in the presence of:


Brendan Gerard Murphy


(Signature of witness)

MARYANNE ROBERTSON
(Print full name of witness)

EXECUTED by **THOMAS EMPIRE PTY LTD** (ACN 152 384 293) pursuant to section 127(1) & (3) *Corporations Act 2001* by being **SIGNED, SEALED AND DELIVERED** by those persons who are authorised to sign for the company:

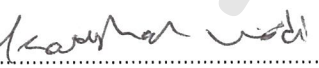

Milani Simic as Director of Unit 405, 388 Keilor Road Niddrie, Victoria, 3042


(signature of witness)

KAUSHAL MODI
(print full name of witness)

1/20 ATKINSON ST CHADSTONE
(print address of witness)


Lloyd Edward Thomas as Director/Secretary of Unit 1, 34 May Street Altona North, Victoria, 3025


(signature of witness)

KAUSHAL MODI
(print full name of witness)

1/20 ATKINSON ST CHADSTONE
(print address of witness)

SIGNED SEALED AND DELIVERED
by **ANDREW REJEEV MANOKARAN**
in the presence of:

Kaushal Modi
.....
(signature of witness)

KAUSHAL MODI
.....
(print full name of witness)

1/20 ATKINSON ST CHADSTONE
.....
(print address of witness)

[Signature]
.....
Andrew Rejeev Manokaran



SIGNED SEALED AND DELIVERED
by **LLOYD EDWARD THOMAS** in the
presence of:

Kaushal Modi
.....
(signature of witness)

KAUSHAL MODI
.....
(print full name of witness)

1/20 ATKINSON ST CHADSTONE
.....
(print address of witness)

[Signature]
.....
Lloyd Edward Thomas



SIGNED SEALED AND DELIVERED
by **ANDREW MANOKARAN** in the
presence of:

Kaushal Modi
.....
(signature of witness)

KAUSHAL MODI
.....
(print full name of witness)

1/20 ATKINSON ST CHADSTONE
.....
(print address of witness)

[Signature]
.....
Andrew Manokaran



SIGNED SEALED AND DELIVERED
by **MARQUETTA MANOKARAN** in the
presence of:

Kaushal Modi
.....
(signature of witness)

KAUSHAL MODI
.....
(print full name of witness)

1/20 ATKINSON ST CHADSTONE
.....
(print address of witness)

[Signature]
.....
Marquetta Manokaran



CONSENTS OF MORTGAGEES AND CAVEATORS

The following mortgagees and caveators (as the case may be) by their endorsement of consent **CONSENT** to this section 173 Agreement and the registration of the Agreement on the relevant titles.

AS TO VOLUME 08836 FOLIO 131 (LOT 61):

PERPETUAL TRUSTEES VICTORIA LTD

Signed by MSA National by Sarah El-Sayed.
under Power of Attorney dated 3 September 2015
a Certified copy of which is filed in Permanent Order
Book 277 Page 035 Item 32

Attorney Sarah El-Sayed.

Witness

Iasmina Maxinen.
Full Name of Witness

AS TO VOLUME 08836 FOLIO 132 (LOT 62):

WESTPAC BANKING CORPORATION

Signed for and on behalf of
Westpac Banking Corporation
ABN 33 007 457 141 by its Attorney:
Tier Three Attorney

Michael Smith

Name of Attorney

Before me:

Signature of Witness

Adam Tram

Full Name of Witness

4-16 Montgomery Street Kogarah NSW 2217
Address

Under Power of Attorney dated 17 January
2001 filed on Permanent Order Book
No 277 at page 016

SCHEDULE

ITEM 1 Date of Agreement	19 September 2019	
ITEM 2 Owners	68 Tyquin Street Laverton, Victoria Volume 08836 Folio 131 (Lot 61) Full Name: Andrew Rejeev Manokaran Address: 18 Ashby Court, Altona Meadows, Victoria, 3028 Full Name: Lloyd Edward Thomas Address: 18 Ashby Court, Altona Meadows, Victoria, 3028 70 Tyquin Street Laverton, Victoria Volume 08836 Folio 132 (Lot 62) Full Name: Thomas Empire Pty Ltd Registered Office: J Giuffre & Co Pty Ltd, 114 Yarra Street, Geelong, Victoria, 3220 Principal Place of Business: Unit 1, 34 May Street, Altona North, Victoria, 3025 Full Name: Andrew Manokaran Address: 2/132 Ferntree Gully Road, Oakleigh East, Victoria, 3166 Full Name: Marquetta Manokaran Address: 2/132 Ferntree Gully Road, Oakleigh East, Victoria, 3166	
ITEM 3 Land	Street address: 68-70 Tyquin Street, Laverton, Victoria, 3028 Certificate of Title Volume and Folio No: Volume 08836 Folios 131 and 132 Lot and Plan of Subdivision: Lots 61 and 62 on Plan of Subdivision 087705	
ITEM 4 Permit	Date of Permit: 25 September 2017 (initially issued as Permit PA1635075 but amended and re-issued on 6 December 2017 as Permit PA1635075A) Description of Permit: Permit No. PA1635075A for "Construction of two or more dwellings on a lot in General Residential Zone and reduce the number of required car parking (visitor) spaces in accordance with the endorsed plans"	

PLANNING PROPERTY REPORT

From www.planning.vic.gov.au at 30 August 2024 11:14 AM

PROPERTY DETAILS

Address: **70A TYQUIN STREET LAVERTON 3028**
Lot and Plan Number: **Lot 2 PS830422**
Standard Parcel Identifier (SPI): **2\PS830422**
Local Government Area (Council): **HOBSONS BAY**
Council Property Number: **5902000690**
Planning Scheme: **Hobsons Bay**
Directory Reference: **Melway 53 F7**

www.hobsonsbay.vic.gov.au

[Planning Scheme - Hobsons Bay](#)

UTILITIES

Rural Water Corporation: **Southern Rural Water**
Melbourne Water Retailer: **Greater Western Water**
Melbourne Water: **Inside drainage boundary**
Power Distributor: **POWERCOR**

STATE ELECTORATES

Legislative Council: **WESTERN METROPOLITAN**
Legislative Assembly: **LAVERTON**

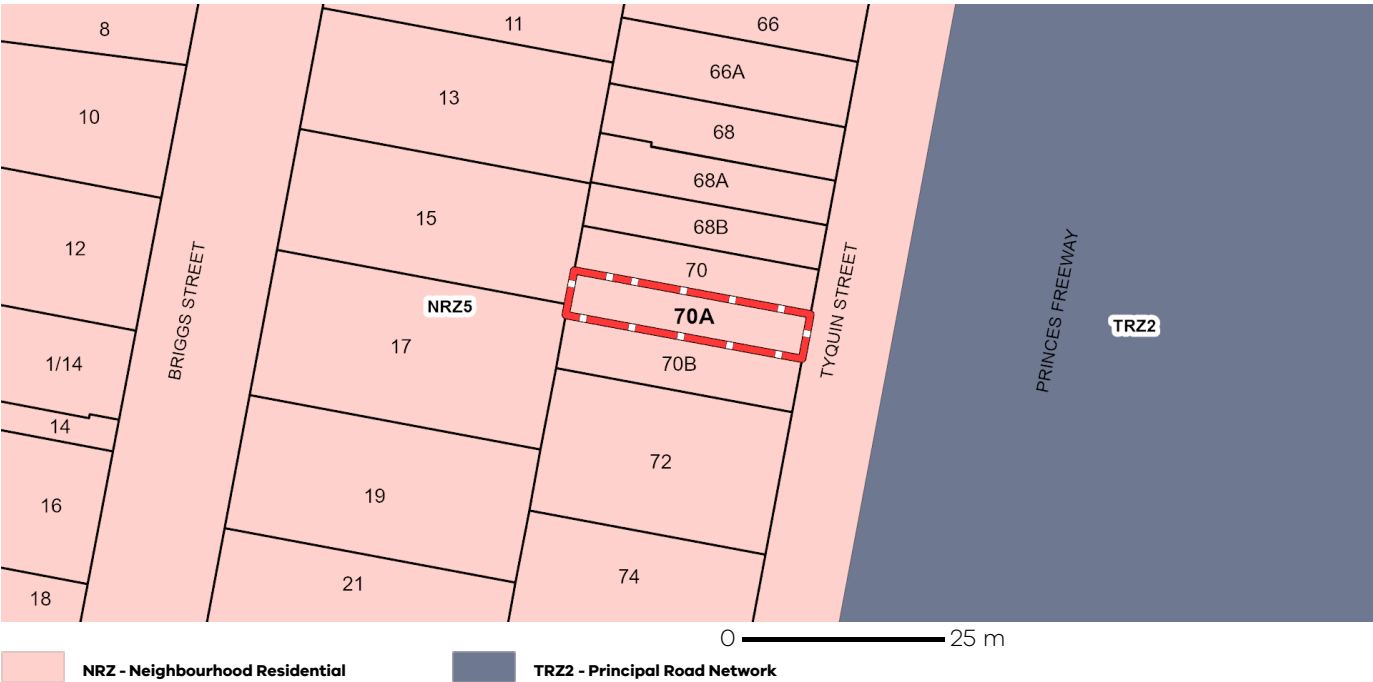
OTHER

Registered Aboriginal Party: **Bunurong Land Council Aboriginal Corporation**

[View location in VicPlan](#)

Planning Zones

[NEIGHBOURHOOD RESIDENTIAL ZONE \(NRZ\)](#)
[NEIGHBOURHOOD RESIDENTIAL ZONE - SCHEDULE 5 \(NRZ5\)](#)



Note: labels for zones may appear outside the actual zone - please compare the labels with the legend.

Planning Overlays

No planning overlay found

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Read the full disclaimer at <https://www.delwp.vic.gov.au/disclaimer>

Notwithstanding this disclaimer, a vendor may rely on the information in this report for the purpose of a statement that land is in a bushfire prone area as required by section 32C (b) of the Sale of Land 1962 (Vic).

PLANNING PROPERTY REPORT: 70A TYQUIN STREET LAVERTON 3028

Doc ID: db7d163e7d9cb0a51d1a18e28addf250751558a5

Further Planning Information

Planning scheme data last updated on 28 August 2024.

A **planning scheme** sets out policies and requirements for the use, development and protection of land. This report provides information about the zone and overlay provisions that apply to the selected land. Information about the State and local policy, particular, general and operational provisions of the local planning scheme that may affect the use of this land can be obtained by contacting the local council or by visiting <https://www.planning.vic.gov.au>

This report is NOT a **Planning Certificate** issued pursuant to Section 199 of the **Planning and Environment Act 1987**. It does not include information about exhibited planning scheme amendments, or zonings that may affect the land. To obtain a Planning Certificate go to Titles and Property Certificates at Landata - <https://www.landata.vic.gov.au>

For details of surrounding properties, use this service to get the Reports for properties of interest.

To view planning zones, overlay and heritage information in an interactive format visit <https://mapshare.maps.vic.gov.au/vicplan>

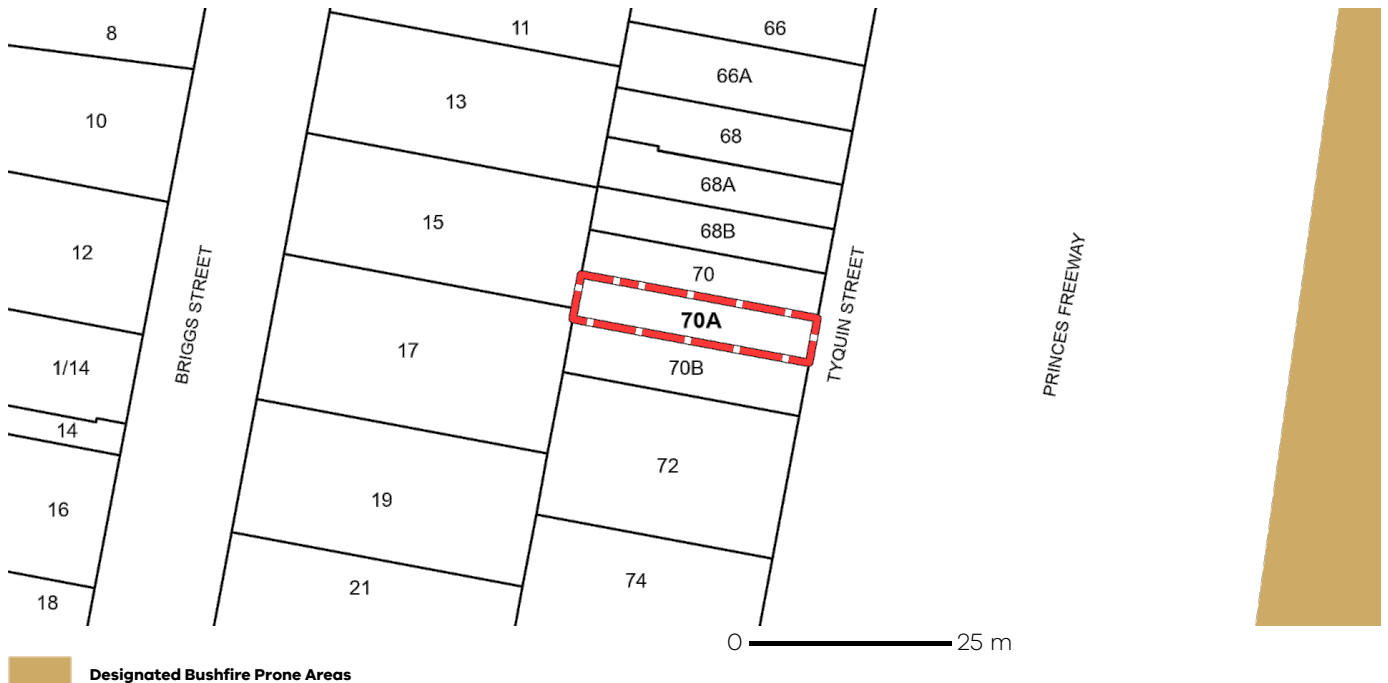
For other information about planning in Victoria visit <https://www.planning.vic.gov.au>

Designated Bushfire Prone Areas

This property is not in a designated bushfire prone area.
No special bushfire construction requirements apply. Planning provisions may apply.

Where part of the property is mapped as BPA, if no part of the building envelope or footprint falls within the BPA area, the BPA construction requirements do not apply.

Note: the relevant building surveyor determines the need for compliance with the bushfire construction requirements.



Designated BPA are determined by the Minister for Planning following a detailed review process. The Building Regulations 2018, through adoption of the Building Code of Australia, apply bushfire protection standards for building works in designated BPA.

Designated BPA maps can be viewed on VicPlan at <https://mapshare.vic.gov.au/vicplan/> or at the relevant local council.

Create a BPA definition plan in [VicPlan](#) to measure the BPA.

Information for lot owners building in the BPA is available at <https://www.planning.vic.gov.au>.

Further information about the building control system and building in bushfire prone areas can be found on the Victorian Building Authority website <https://www.vba.vic.gov.au>. Copies of the Building Act and Building Regulations are available from <http://www.legislation.vic.gov.au>. For Planning Scheme Provisions in bushfire areas visit <https://www.planning.vic.gov.au>.

Native Vegetation

Native plants that are indigenous to the region and important for biodiversity might be present on this property. This could include trees, shrubs, herbs, grasses or aquatic plants. There are a range of regulations that may apply including need to obtain a planning permit under Clause 52.17 of the local planning scheme. For more information see [Native Vegetation \(Clause 52.17\)](#) with local variations in [Native Vegetation \(Clause 52.17\) Schedule](#)

To help identify native vegetation on this property and the application of Clause 52.17 please visit the Native Vegetation Information Management system <https://nvim.delwp.vic.gov.au/> and [Native vegetation \(environment.vic.gov.au\)](#) or please contact your relevant council.

You can find out more about the natural values on your property through NatureKit [NatureKit \(environment.vic.gov.au\)](#)

PROPERTY REPORT



Energy,
Environment
and Climate Action

From www.land.vic.gov.au at 30 August 2024 11:14 AM

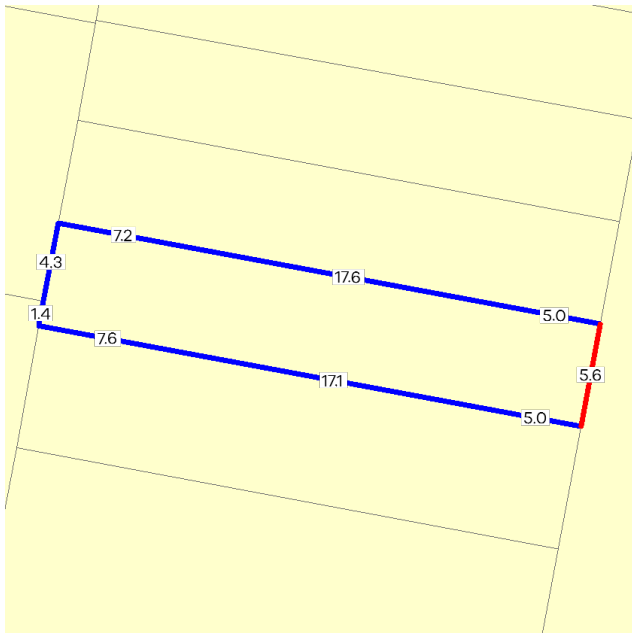
PROPERTY DETAILS

Address: **70A TYQUIN STREET LAVERTON 3028**
Lot and Plan Number: **Lot 2 PS830422**
Standard Parcel Identifier (SPI): **2\PS830422**
Local Government Area (Council): **HOBSONS BAY**
Council Property Number: **5902000690**
Directory Reference: **Melway 53 F7**

www.hobsonsbay.vic.gov.au

SITE DIMENSIONS

All dimensions and areas are approximate. They may not agree with those shown on a title or plan.



Area: 168 sq. m

Perimeter: 71 m

For this property:

— Site boundaries

— Road frontages

Dimensions for individual parcels require a separate search, but dimensions for individual units are generally not available.

Calculating the area from the dimensions shown may give a different value to the area shown above

For more accurate dimensions get copy of plan at [Title and Property Certificates](#)

UTILITIES

Rural Water Corporation: **Southern Rural Water**
Melbourne Water Retailer: **Greater Western Water**
Melbourne Water: **Inside drainage boundary**
Power Distributor: **POWERCOR**

STATE ELECTORATES

Legislative Council: **WESTERN METROPOLITAN**
Legislative Assembly: **LAVERTON**

PLANNING INFORMATION

Property Planning details have been removed from the Property Reports to avoid duplication with the Planning Property Reports from the Department of Transport and Planning which are the authoritative source for all Property Planning information.

The Planning Property Report for this property can found here - [Planning Property Report](#)

Planning Property Reports can be found via these two links

Vicplan <https://mapshare.vic.gov.au/vicplan/>

Property and parcel search <https://www.land.vic.gov.au/property-and-parcel-search>

PROPERTY REPORT

Area Map





LAND INFORMATION CERTIFICATE

In accordance with Section 121 *Local Government Act 2020*

This certificate provides information regarding valuations, rates, charges, Fire Services Property Levy, other monies owing and any orders and notices made under the *Local Government Act, 2020*, *Local Government Act 1989*, *Fire Services Property Levy Act 2012* or under any local laws of the Council. This certificate is not required to include information regarding planning, building, health, landfill, other flooding information or service easements. Information regarding these matters may be available from the Council or relevant authority. A fee may be charged for such information.

Hobsons Bay City Council is introducing a new process for handing documents - please ensure that Notices of Acquisitions/Dispositions are only emailed to customerservice@hobsonsbay.vic.gov.au and not any other email address that you may have previously used.

Ascot Solicitors C/- InfoTrack (ActionStep)
c/o LANDATA

Date 27/06/2024

Certificate 7516

Applicants Reference 73343571-020-5

Property Details

Assessment Number 5902000690 Property Address 70a Tyquin St, Laverton

Parcel Description L2 PS830422 V12186 F267

Valuation Date 01/01/2023

Effective Date 01/07/2023

Valuation Method: Capital Improved Value

Site Value \$230,000

Capital Improved Value \$230,000

Net Annual Value \$11,500

Rates and charges for the financial year ending 30 June, 2024.

	<u>Amount Raised</u>	<u>Balance</u>
General Rate	\$464.22	\$464.22
Garbage Charge	\$0.00	\$0.00
Green Waste Charge	\$0.00	\$0.00
Fire Service Property Levy	\$135.58	\$135.58
Arrears of Rates and Charges		\$637.88
Interest		\$72.05
Legal Costs	\$0.00	\$0.00
Fire Hazard & Other Charges	\$0.00	\$0.00
		<u>\$1,309.73</u>

Other Charges

Principal

Interest



TOTAL OUTSTANDING

\$1,309.73

Comments **Payment Options: B/Pay Biller Code: 39032 Reference No: 5902000690 7**

Property Number: 5902000690
Property Address: 70a Tyquin St, Laverton

Certificate No: 7516

IMPORTANT NOTES:

1. This Certificate may be updated verbally for up to three (3) months from the date of issue. It should be noted that Council will only be held responsible for information given in writing and not verbally. You are encouraged to obtain an update of this certificate as close to settlement as possible.
2. Rates and Charges not paid by the due dates are subject to penalty interest. Interest will continue to accrue at the rate fixed under Section 2 of the *Penalty Interest Rate Act 1983*. Until such time as the payment of outstanding rates and charges is received.
3. This Land Information Certificate does not contain any information about planning controls that apply to the land. Planning controls may regulate the use or development of the land. You should make enquiries with Council through its Planning Department or apply for a planning certificate under the *Planning and Environment Act 1987* to ascertain the planning controls that may apply to the land.
4. Payments are subject to clearance by the bank.
5. In accordance with Section 122 of the *Local Government Act 2020*, a Notice of Acquisition must be provided to Council within one (1) month of acquisition of the land. Failure to provide this notice may make the person acquiring the land guilty of an offence. Notices to be sent to **customerservice@hobsonsbay.vic.gov.au**

For further information, please contact Council's Rates Office on 1300 179 944.

Receipt for the sum of \$28.90 being the appropriate fee for this certificate is acknowledged.

I hereby certify that as the date of issue, the information given in this certificate is a true and and conforms with the requirements of the appropriate sections of the *Local Government Act 2020*.

Delegated Officer

Property Clearance Certificate

Land Tax



INFOTRACK / ASCOT SOLICITORS

Your Reference:	LLOYD
Certificate No:	78752699
Issue Date:	27 JUN 2024
Enquiries:	ESYSPROD

Land Address: 70A TYQUIN STREET LAVERTON VIC 3028

Land Id	Lot	Plan	Volume	Folio	Tax Payable
47006861	2	830422	12186	267	\$1,728.40

Vendor: THOMAS EMPIRE PTY LTD
Purchaser: FOR INFORMATION PURPOSES

Current Land Tax	Year	Taxable Value	Proportional Tax	Penalty/Interest	Total
THOMAS GROUP TRUST	2024	\$230,000	\$1,728.40	\$0.00	\$1,728.40

Comments: Land Tax will be payable but is not yet due - please see notes on reverse.

Current Vacant Residential Land Tax	Year	Taxable Value	Proportional Tax	Penalty/Interest	Total
-------------------------------------	------	---------------	------------------	------------------	-------

Comments:

Arrears of Land Tax	Year	Proportional Tax	Penalty/Interest	Total
---------------------	------	------------------	------------------	-------

This certificate is subject to the notes that appear on the reverse. The applicant should read these notes carefully.


Paul Broderick
Commissioner of State Revenue

CAPITAL IMPROVED VALUE:	\$230,000
SITE VALUE:	\$230,000
CURRENT LAND TAX CHARGE:	\$1,728.40



Notes to Certificate - Land Tax

Certificate No: 78752699

Power to issue Certificate

1. Pursuant to section 95AA of the *Taxation Administration Act 1997*, the Commissioner of State Revenue must issue a Property Clearance Certificate (Certificate) to an owner, mortgagee or bona fide purchaser of land who makes an application specifying the land for which the Certificate is sought and pays the application fee.

Amount shown on Certificate

2. The Certificate shows any land tax (including Vacant Residential Land Tax, interest and penalty tax) that is due and unpaid on the land described in the Certificate at the date of issue. In addition, it may show:
 - Land tax that has been assessed but is not yet due,
 - Land tax for the current tax year that has not yet been assessed, and
 - Any other information that the Commissioner sees fit to include, such as the amount of land tax applicable to the land on a single holding basis and other debts with respect to the property payable to the Commissioner.

Land tax is a first charge on land

3. Unpaid land tax (including Vacant Residential Land Tax, interest and penalty tax) is a first charge on the land to which it relates. This means it has priority over any other encumbrances on the land, such as a mortgage, and will continue as a charge even if ownership of the land is transferred. Therefore, a purchaser may become liable for any such unpaid land tax.

Information for the purchaser

4. Pursuant to section 96 of the *Land Tax Act 2005*, if a purchaser of the land described in the Certificate has applied for and obtained a certificate, the amount recoverable from the purchaser by the Commissioner cannot exceed the amount set out in the certificate, described as the "Current Land Tax Charge" overleaf. A purchaser cannot rely on a Certificate obtained by the vendor.

Information for the vendor

5. Despite the issue of a Certificate, the Commissioner may recover a land tax liability from a vendor, including any amount identified on this Certificate.

Apportioning or passing on land tax to a purchaser

6. A vendor is prohibited from apportioning or passing on land tax to a purchaser under a contract of sale of land entered into on or after 1 January 2024, where the purchase price is less than \$10 million (to be indexed annually from 1 January 2025, as set out on the website for Consumer Affairs Victoria).

General information

7. A Certificate showing no liability for the land does not mean that the land is exempt from land tax. It means that there is nothing to pay at the date of the Certificate.
8. An updated Certificate may be requested free of charge via our website, if:
 - The request is within 90 days of the original Certificate's issue date, and
 - There is no change to the parties involved in the transaction for which the Certificate was originally requested.

For Information Only

LAND TAX CALCULATION BASED ON SINGLE OWNERSHIP

Land Tax = \$975.00

Taxable Value = \$230,000

Calculated as \$975 plus (\$230,000 - \$100,000) multiplied by 0.000 cents.

Land Tax - Payment Options

BPAY



Billers Code: 5249
Ref: 78752699

Telephone & Internet Banking - BPAY®

Contact your bank or financial institution to make this payment from your cheque, savings, debit or transaction account.

www.bpay.com.au

CARD



Ref: 78752699

Visa or Mastercard

Pay via our website or phone 13 21 61.
A card payment fee applies.

sro.vic.gov.au/paylandtax

Property Clearance Certificate

Windfall Gains Tax



INFOTRACK / ASCOT SOLICITORS

Your Reference:	LLOYD
Certificate No:	78752699
Issue Date:	27 JUN 2024

Land Address: 70A TYQUIN STREET LAVERTON VIC 3028

Lot	Plan	Volume	Folio
2	830422	12186	267

Vendor: THOMAS EMPIRE PTY LTD
Purchaser: FOR INFORMATION PURPOSES

WGT Property Id	Event ID	Windfall Gains Tax	Deferred Interest	Penalty/Interest	Total
		\$0.00	\$0.00	\$0.00	\$0.00

Comments: No windfall gains tax liability identified.

This certificate is subject to the notes that appear on the reverse. The applicant should read these notes carefully.

Paul Broderick
Commissioner of State Revenue

CURRENT WINDFALL GAINS TAX CHARGE:
\$0.00

Notes to Certificate - Windfall Gains Tax

Certificate No: 78752699

Power to issue Certificate

1. Pursuant to section 95AA of the *Taxation Administration Act 1997*, the Commissioner of State Revenue must issue a Property Clearance Certificate (Certificate) to an owner, mortgagee or bona fide purchaser of land who makes an application specifying the land for which the Certificate is sought and pays the application fee.

Amount shown on Certificate

2. The Certificate shows in respect of the land described in the Certificate:
- Windfall gains tax that is due and unpaid, including any penalty tax and interest
 - Windfall gains tax that is deferred, including any accrued deferral interest
 - Windfall gains tax that has been assessed but is not yet due
 - Windfall gains tax that has not yet been assessed (i.e. a WGT event has occurred that rezones the land but any windfall gains tax on the land is yet to be assessed)
 - Any other information that the Commissioner sees fit to include such as the amount of interest accruing per day in relation to any deferred windfall gains tax.

Windfall gains tax is a first charge on land

3. Pursuant to section 42 of the *Windfall Gains Tax Act 2021*, windfall gains tax, including any accrued interest on a deferral, is a first charge on the land to which it relates. This means it has priority over any other encumbrances on the land, such as a mortgage, and will continue as a charge even if ownership of the land is transferred. Therefore, a purchaser may become liable for any unpaid windfall gains tax.

Information for the purchaser

4. Pursuant to section 42 of the *Windfall Gains Tax Act 2021*, if a bona fide purchaser for value of land applies for and obtains a Certificate in respect of the land, the maximum amount recoverable from the purchaser by the Commissioner is the amount set out in the certificate, described as the "Current Windfall Gains Tax Charge" overleaf.
5. If the certificate states that a windfall gains tax is yet to be assessed, note 4 does not apply.
6. A purchaser cannot rely on a Certificate obtained by the vendor.

Information for the vendor

7. Despite the issue of a Certificate, the Commissioner may recover a windfall gains tax liability from a vendor, including any amount identified on this Certificate.

Passing on windfall gains tax to a purchaser

8. A vendor is prohibited from passing on a windfall gains tax liability to a purchaser where the liability has been assessed under a notice of assessment as at the date of the contract of sale of land or option agreement. This prohibition does not apply to a contract of sale entered into before 1 January 2024, or a contract of sale of land entered into on or after 1 January 2024 pursuant to the exercise of an option granted before 1 January 2024.

General information

9. A Certificate showing no liability for the land does not mean that the land is exempt from windfall gains tax. It means that there is nothing to pay at the date of the Certificate.
10. An updated Certificate may be requested free of charge via our website, if:
- The request is within 90 days of the original Certificate's issue date, and
 - There is no change to the parties involved in the transaction for which the Certificate was originally requested.
11. Where a windfall gains tax liability has been deferred, interest accrues daily on the deferred liability. The deferred interest shown overleaf is the amount of interest accrued to the date of issue of the certificate.

Windfall Gains Tax - Payment Options

BPAY  Billers Code: 416073 Ref: 78752698 Telephone & Internet Banking - BPAY® Contact your bank or financial institution to make this payment from your cheque, savings, debit or transaction account. www.bpay.com.au	CARD  Ref: 78752698 Visa or Mastercard Pay via our website or phone 13 21 61. A card payment fee applies. sro.vic.gov.au/payment-options	Important payment information Windfall gains tax payments must be made using only these specific payment references. Using the incorrect references for the different tax components listed on this property clearance certificate will result in misallocated payments.
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MKT & Associates Pty Ltd T/A MKT Building Surveyors
179 Peel Street, North Melbourne VIC 3051
Office: 9379 0009 or Mobile 0402 619 929
office@mktconsultants.com.au
www.mktconsultants.com.au
ABN 12 648 790 498

12/09/2023

File No: 6981

Owner: Lloyd Thomas, Thomas Empire Pty Ltd, Andrew & Marquetta Manokaran
1/34 May Street
ALTONA NORTH VIC 3025

Amended Building Permit

Dear Sir/Madam,

Building Permit: **8270121149762**

Please find enclosed a copy of the approved amended building permit documentation for the below mentioned project.

Property Details:

Lot 1 - 6, 68, 68a, 68b, 70, 70a & 70b Tyquin Street Laverton VIC 3028

Project Description:

Construction of Unit Development, Garages & Fence

Building Permit Amendments:

Building permit extension of time - Completion by 15/04/24

If you have any further queries, please do not hesitate to contact the undersigned.

Yours faithfully,

Minh Tran

A handwritten signature in black ink, appearing to be 'Minh Tran', written over a horizontal line.

BS-U 27714

12/09/2023

File No: 6981

Dear Sir/Madam,

Extension of Time

Building Permit: 8270121149762
Permit Address: Lot 1 - 6, 68, 68a, 68b, 70, 70a & 70b Tyquin Street Laverton VIC 3028
Nature of Works Construction of Unit Development, Garages & Fence
New Complete By Date: 15/04/2024

I refer to your request for an extension of time in relation to the Building Permit 8270121149762 and advise that this permit has been extended. The new complete by date for the works is 15/04/2024.

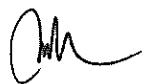
All works associated with the building permit are to be completed, inspected and approved prior to this date to avoid having to obtain a new building permit.

The cost of 4 inspections were included in the initial fees paid. Additional inspections will be charged out at our current rate of \$200.00 plus GST per inspection (or \$200 per unit per inspection) for Domestic and \$300 plus GST for Commercial project.

Please find enclosed a receipt for the fee submitted.

Please do not hesitate to contact me should you have any queries in relation to this matter.

Yours faithfully,



Minh Tran BS-U 27714
RELEVANT BUILDING SURVEYOR

Building Permit

Form 2 Building Act 1993 Building Regulations 2018 – Regulation 37(1)



Permit No: BS-U 27714 8270121149762

179 Peel Street, North Melbourne VIC 3051
P: 03 9379 0009 F: 03 9326 5556
E: office@mktconsultants.com.au
www.mktconsultants.com.au

Issued To -

Name: Lloyd Thomas
ACN:
Postal Address: 1/34 May Street ALTONA NORTH, VIC 3025
Email: lloyd@thomasproperty.melbourne

Address for Serving or Giving of Documents

Address: 1/34 May Street ALTONA NORTH VIC 3025
Contact Person: Lloyd Thomas
Phone: 0411 757 991

Ownership Details

Name: Thomas Empire Pty Ltd, Andrew & Marquetta Manokaran
ACN: 152384293
Postal Address: 1/34 May Street ALTONA NORTH, VIC 3025
Email: lloyd@thomasproperty.melbourne
Contact Person: Lloyd Thomas
Phone: 0412 422 702

Property Details

Address: Lot (1 - 6) 68, 68a, 68b, 70, 70a, 70b Tyquin Street LAVERTON VIC 3028
Title Details: LP/PS: 830422T, Vol: 12186 , Folio: 266 to 271
Municipal District: Hobsons Bay City Council

Builder

Name: iB Homes Pty Ltd
Phone: 0412 422 702
ACN: 623037801
Registration No. 65627
Postal Address: UNIT 14 85-91 Keilor Park Drive TULLAMARINE, VIC 3043

This builder is specified under section 24B(4) of the Building Act 1993 for the building work to be carried out under this permit.

Building Practitioner or Architect Engaged to Prepare Documents for this Permit

Name	Category/Class	Registration No.
DSP Architects	Architect - Company	C 50289
Pradeep Patel	Engineer - Civil	EC 40509

T: (03) 9379-0009 • E: office@mktconsultants.com.au
179 Peel Street NORTH MELBOURNE VIC 3051
<http://www.mktconsultants.com.au>

POWERED BY - PERMIT PRO  BETTER BUILT SOFTWARE

Details of Domestic Building Work Insurance

Name of Builder: iB Homes Pty Ltd
Insurance Provider: Insurance House Pty Ltd
Policy Number: C570472 to C570477
Policy Issued: 5/01/2021
Policy Cover: \$1,551,720

Details of Relevant Planning Permit

Planning permit No.: PA1635075A
Date of grant of planning permit: 6/12/2017

Nature of Building Work

CDB-M 65627 Special Circumstance - Construction of Unit Development (1a(ii) & 10a)

Version of BCA applicable to Permit: BCA 2019 Volume 2
Stage of building work permitted: As shown on the approved plans
Total floor area of new building work in m²: 588.0
Cost of building work (this stage): \$1,551,720
Cost of building work (all stages): \$1,551,720

Building Classification

Nature of Work	Part of Building	BCA Classification
Construction of	Units 1 to 6	1a(ii)
Construction of	Garages	10a
Construction of	Fence	10b

Performance Solutions

A performance solution was used to determine compliance with the following performance requirements of the BCA that relate to the building to which this permit applies:

No	Relevant Performance Requirement	Details of Performance Solution
1	P2.1.1 Structural stability and resistance P2.2.2 Weatherproofing	To permit use of BRAC accredited Masterwall Polystyrene cladding.

Prescribed Reporting Authorities

The following bodies are prescribed reporting authorities for the purposes of the application for this permit in relation to the matters set out below.

Reporting Authority	Matter Reported On or Consented To	Regulation No.
Council	Point of discharge of storm water	reg. 133(2)

Combined Allotment Statement

A determination has been made under regulation 64(1) in relation to the building work that is the subject of this permit.

Exemption from, or Consent to Partial Compliance with, Certain Requirements

The following exemptions from, or a consent to a partial compliance with, certain requirements of the Building Regulations 2018 was granted or given under regulation 229(2), 231(2), 233(3) or 234(2) of the Building Regulations 2018 in relation to the building work to which this permit applies:

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<http://www.mktconsultants.com.au>

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Part or whole of building or place of public entertainment or building work exempt from, or given consent to partial compliance with, requirements of the Building Regulations 2018	Nature and scope of exemption
Whole of Building	A Combined Allotment Statement has been granted to allow Lot 1 to Lot 6 to be treated as one allotment under Building Regulation 67.

Protection Work

Protection work is not required in relation to the building work proposed in this permit.

Inspection Requirements

The mandatory notification stages are -

- Tree Root Barrier
- Pre Slab
- Slab Steel
- Frame
- Final

Occupation or Use of Building

An Occupancy Permit is required prior to the occupation or use of this building.

If an occupancy permit is required, the permit is required for the whole of the building in relation to which the building work is carried out.

Commencement and Completion

This building work must commence by 15/02/2022.

If the building work to which this building permit applies is not commenced by this date, this building permit will lapse unless an extension is applied for and granted by the relevant building surveyor before this date under regulation 59 of the Building Regulations 2018.

This building work must be completed by 15/02/2023.

If the building work to which this building permit applies is not completed by this date, this building permit will lapse unless an extension is applied for and granted by the relevant building surveyor before this date under regulation 59 of the Building Regulations 2018.

Documents Supporting Application

Document Name	Prepared By	Ref No
Application Form and Appointment of RBS		
Application for Combined Allotment		
Combined Allotment Determination		
Certificate of Title, Plan of Subdivision and 173 Agreement (COMBINED)		
ASIC Company Extract - Proof of Ownership		
Architectural Drawings	DSP Architects	1212
Engineers Certificate Form 126	Pradeep Patel	
Engineers Structural Computations	Pradeep Patel	190234
Engineers Structural Drawings	Pradeep Patel	19034
Drainage Certificate Form 126	Pradeep Patel	
Engineers Structural Computations - Drainage	Pradeep Patel	190234-C
Drainage Design	Pradeep Patel	190234-C
Energy Rating Report and Endorsed Drawings	Amanda Rowe	
Artificial Lighting Calculations		
MBAV General Specifications		

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Document Name	Prepared By	Ref No
Builders Registration - iB Homes Pty Ltd		
Builders Warranty Insurance Policy	Insurance House Pty Ltd	C570472 to C570477
Legal Point of Discharge of Stormwater		
Re-Restabishment Survey	Raven Land Surveyors	8091
Sewer Depth Offset Details		
Soil Report or Bore Log Test	GeoHub	187759
Property Information from Council		
Performance Solution Determination		
Request for Alt Solution - Polystyrene Cladding		
Town Planning Permit		PA1635075A
Town Planning Permit Extension of Time		
Town Planning Endorsed Drawings		
Town Planning Permit and Endorsed Plans -Subdivision		

Permit Conditions

This building permit is subject to the following conditions –

No	Condition
1	Please note that it is the owners responsibility to ensure compliance with any covenants, encumbrances OR 173 agreements contained within the title.
2	Approval is conditional upon no unauthorised encroachment of any part of the work and/or building beyond the allotment boundary/street alignment. Where necessary, boundary locations shall be established by preparation of a title re-establishment
3	Manufacturer's floor joist/posi layout(s), computations and certificate(s) must be submitted to Relevant Building Surveyor for approval prior to frame inspection.
4	Manufacturer's roof truss layout(s), computations and certificate(s) must be submitted to the Relevant Building Surveyor for approval prior to frame inspection.
5	Any building works pursuant to this permit shall strictly comply with the Building Regulations 2018 and the Building Act 1993. Before building work has commenced, additional permits or approvals may need to be obtained under other Acts/Regulation
6	This permit only allows you to construct the building works. It is the owners/developers responsibility to ensure all conditions of the town planning permit are complied with. There may be particular conditions that must be satisfied prior to commencement of work/development. It may be a breach of the planning permit if these are not met.

Relevant Building Surveyor

Name: Minh Tran
 ACN: 140369624
 Address: 179 Peel Street NORTH MELBOURNE VIC 3051
 Email: office@mktconsultants.com.au
 Building practitioner registration no.: BS-U 27714

Permit No.: BS-U 27714 8270121149762

Date of Issue of Permit: 15/02/2021

Signature:



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Terms and Conditions

1. Role of MKT Building Surveyors Pty Ltd

1.1 Professional Standard of Care

In performing the Services, MKT Building Surveyors Pty Ltd shall:

(a) exercise the degree of reasonable skill, care and diligence;

(b) and maintain the ethical standards;

normally expected of the profession of building surveyors.

1.2 Notice of Matters Likely to Change Scope or Timing of Services

If MKT Building Surveyors Pty Ltd becomes aware of anything which may change the scope or timing or cost of the Services, then it shall as soon as practicable give written notice to the Client. The notice shall as far as practicable contain particulars of the change.

2. Payment to MKT Building Surveyors Pty Ltd for Services

2.1 Client to Make Payment

In consideration of the promise by MKT Building Surveyors Pty Ltd to perform the Services, the Client promises to pay to MKT Building Surveyors Pty Ltd the fees and the expenses as set out in MKT Building Surveyors Pty Ltd's Letters.

2.2 Timing of Payment

At or after the time that any part of the Services are performed by MKT Building Surveyors Pty Ltd, MKT Building Surveyors Pty Ltd may give the Client an account for that part of the Services performed and for any expenses incurred. The Client shall pay the full amount owing in respect of each account within fourteen (14) days of issue of the account.

2.3 Interest on Overdue Payment

In addition to all other rights and remedies of MKT Building Surveyors Pty Ltd, if the Client fails to pay all monies as and when due, MKT Building Surveyors Pty Ltd shall be entitled to recover interest at the higher of 15% per annum and the rate that is 2% higher than the rate for the time being fixed under Section 2 of the Penalty Interest Rates Act 1983.

2.4 Disputed Claims

If the Client disputes the whole or any portion of the amount claimed in an account submitted by MKT Building Surveyors Pty Ltd, then it shall pay that portion of the amount stated in the account which is not in dispute and it shall notify MKT Building Surveyors Pty Ltd in writing of the reasons for disputing the account. If it is established that some or all of the amount in dispute ought properly to have been paid at the time it was first claimed, then the Client shall pay the amount finally established together with interest on that amount in accordance with clause 3.3.

2.5 Payment of Costs If Building Works Delayed

If the performance of the Services is delayed beyond a reasonable period for any reason other than a breach of the Agreement by MKT Building Surveyors Pty Ltd, then the Client shall pay to MKT Building Surveyors Pty Ltd a reasonable sum of money to cover the consequential costs and expenses suffered by MKT Building Surveyors Pty Ltd as a result of the delay.

2.6 Effect of Termination on Right to Payment

If the engagement of MKT Building Surveyors Pty Ltd is terminated for any reason other than for breach of these Terms of Engagement by MKT Building Surveyors Pty Ltd, then MKT Building Surveyors Pty Ltd shall be entitled to pro rata payment for the Services carried out and consequential costs and expenses incurred as a result of the termination, for the period up to and including the date of termination.

2.7 Changes in Laws

If after the date of these Terms of Engagement there is any change to the laws, by-laws, regulations or ordinances of the Commonwealth of Australia or a State or Territory of Australia or any statutory authority and that change directly or indirectly increases or decreases the costs or expenses incurred by MKT Building Surveyors Pty Ltd in performing the Services, then the fees and expenses otherwise payable to MKT Building Surveyors Pty Ltd under these Terms of Engagement shall be increased or decreased accordingly.

3. Scope of Liability

3.1 Direct and Indirect Loss

The liability of MKT Building Surveyors Pty Ltd to the Client arising out of the performance or non-performance of the Services, whether under the law of contract, tort or otherwise shall be limited to the direct cost of rectifying the Building Works.

3.2 Maximum Amount of Liability

The maximum liability of MKT Building Surveyors Pty Ltd to the Client arising out of the performance or non-performance of the Services, whether under the law of contract, tort or otherwise, shall be the amount of \$50,000.00.

3.3 Release

The Client releases MKT Building Surveyors Pty Ltd from, and agrees that MKT Building Surveyors Pty Ltd is not liable for, any liability or loss arising from or any costs incurred in connection with the Services in excess of the MKT Building Surveyors Pty Ltd's liability determined in accordance with clause 4.2.

3.4 Duration of Liability

MKT Building Surveyors Pty Ltd shall be deemed to have been discharged from all liability in respect of the Services, whether under the law of contract tort or otherwise, at the expiration of one (1) year from the completion of the Services, and the Client (and persons claiming through or under the Client) shall not be entitled to commence any action or claim whatsoever against MKT Building Surveyors Pty Ltd (or any employee of MKT Building Surveyors Pty Ltd) in respect of the Services after that date.

3.5 Extent of Warranty

Except to the extent imposed by law or specifically provided for in these Terms of Engagement, MKT Building Surveyors Pty Ltd does not give any warranty nor accept any liability in relation to the performance or non-performance of the Services. If, apart from this clause, any warranty would be implied whether by law, custom or otherwise, that warranty is to the full extent permitted by law hereby excluded. Nothing herein, contained shall be read or applied so as to purport to exclude, restrict or modify or have the effect of excluding, restricting or modifying the application in relation to the supply of any goods or services pursuant to these Terms of Engagement of all or any of the provisions of Part V of the Trade Practices Act 1974 (as amended) or any relevant State Act or Territorial Ordinance which by law cannot be excluded, restricted or modified.

3.6 Indemnity

The Client shall indemnify and keep indemnified MKT Building Surveyors Pty Ltd from and against all suits, actions, claims or demands by any person for any loss, damages, expense or costs as a result of any negligence or default by the Client.

4.0 Termination of Services

4.1 Termination by Client

Subject always to the provisions of the Building Act 1983 (as amended), the Client may by notice in writing served on MKT Building Surveyors Pty Ltd terminate the MKT Building Surveyors Pty Ltd's engagement under these Terms of Engagement. (a) If MKT Building Surveyors Pty Ltd is in breach of the provisions of these Terms of Engagement and the breach has not been remedied within twenty-eight (28) days (or such longer period as the Client may allow) of the service by the Client on MKT Building Surveyors Pty Ltd of a notice requiring the breach to be remedied; or

(b) If the Client serves on MKT Building Surveyors Pty Ltd a notice requiring that these Terms of Engagement be terminated on a date specified in the notice being not less than sixty (60) days after from the date of issue of the notice.

4.2 Termination by MKT Building Surveyors Pty Ltd Subject always to the provisions of the Building Act 1993 (as amended), MKT Building Surveyors Pty Ltd may by notice in writing served on the Client terminate MKT Building Surveyors Pty Ltd's obligations under these Terms of Engagement:

(a) If the Client is in breach of the conditions of any part of clause 3 hereof and the breach has not been remedied within seven (7) days (or such longer period as MKT Building Surveyors Pty Ltd may allow) of the service by MKT Building Surveyors Pty Ltd on the Client of a notice requiring the breach to be remedied; or (b) If the Client is in breach of the provisions of any other clause hereof and the breach has not been remedied within twenty-eight (28) days (or such longer period as MKT Building Surveyors Pty Ltd may allow) of the service by MKT Building Surveyors Pty Ltd on the Client of a notice requiring the breach to be remedied; or (c) If MKT Building Surveyors Pty Ltd serves on the Client a notice requiring that these Terms of Engagement be terminated on a date specified in the notice being not less than sixty (60) days after the date of the notice.

4.3 Termination Not to Affect Rights in Respect of Prior Breaches

Termination shall be without prejudice to any claim which either party may have against the other in respect of any breach of the provisions of these Terms of Engagement which occurred prior to the date of determination.

4.4 Work-In-Progress

If MKT Building Surveyors Pty Ltd's obligations are terminated, then the Client shall pay for all work in progress performed by MKT Building Surveyors Pty Ltd up until the date of termination.

5. General Matters

5.1 Transfer and Assignment

(a) MKT Building Surveyors Pty Ltd and the Client each binds itself and its partners (if any), successors, executors, administrators, permitted assigns and legal representatives to the other party to these Terms of Engagement and to the partners (if any), successors, executors, administrators, permitted assigns and legal representatives of the other party in respect to all covenants and obligations of these Terms of Engagement.

(b) Neither MKT Building Surveyors Pty Ltd nor the Client shall assign, sublet or transfer any right or obligation under the Agreement without the written consent of the other party. Unless specifically stated to the contrary in any written consent to an assignment, no assignment shall release or discharge the assignor from any obligation under these Terms of Engagement.

(c) Nothing contained in this Clause shall prevent MKT Building Surveyors Pty Ltd from employing such persons or companies as it may deem appropriate to assist it in the performance of these Terms of Engagement.

5.2 Consultants

If circumstances arise which require the services of a specialist or expertise outside the field of MKT Building Surveyors Pty Ltd, then MKT Building Surveyors Pty Ltd may with the prior approval of the Client engage the appropriate consultant. The consultant shall be engaged at the Client's expense and on its behalf. The Client's approval shall not be unreasonably withheld.

6. Definitions and Interpretation

6.1 Definitions

Except where the context requires otherwise: "the Client" means the owner of the Property and to the extent appropriate includes the agents (including the builder), officers and employees of the owner; "fees", "expenses" and "Services" means the fees, expenses and Services referred to in MKT Building Surveyors Pty Ltd's Letters to the Client; "MKT Building Surveyors Pty Ltd's Letters" means MKT Building Surveyors Pty Ltd's correspondence setting out its proposal to the Client and its confirmation of its engagement by the Client; "Building Works", "owner" and "Property" mean the Building Works, owner and Property described on the Application for the Building Permit.

Severability The parties agree that a construction of these Terms of Engagement that results in all the provisions being enforceable is to be preferred to a construction that does not so result. If, however, a provision of these Terms of Engagement is illegal or unenforceable, then:

(a) if the provision would not be illegal or unenforceable if a word or words were omitted, that word or words are severed; and

(b) in any other case, the whole provision is severed and the remainder of these Terms of Engagement continue in force.

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Certificate of Insurance

Building Act 1993 Section 135
Domestic Building Insurance Order
DOMESTIC BUILDING CONTRACT

Policy / Certificate No: DBIVIC22092396

Date of Issue: 15 September 2022

S.P Clancy Constructions Pty Ltd
10/345 Plummer Street, Port Melbourne, VIC, 3207

A contract of insurance complying with the Ministerial Order for Domestic Building Insurance Issued under Section 135 of the Building Act 1993 has been issued by Assetinsure Pty Limited as insurer, in respect of the Domestic Building Work described below.

BUILDER

Building Entity Name:
ABN/ACN:
VBA Registration Number:

S.P Clancy Constructions Pty Ltd
14 122 621 603/122 621 603
CDB-U 49182

DETAILS OF WORKS

Building Owner (The Insured):
Address:
Description of Works:
Contract Dated:
Declared Contract Price:
Estimated Start Date:
Estimated Completion Date:

Thomas Empire Pty Ltd
Lot 2 68-70 Tyquin Street, Laverton VIC 3028
Builder Take Over Work - Multi Dwelling
27 July 2022
\$302,191.73
15 September 2022
20 May 2023

Subject to the Building Act 1993, the Ministerial Order, and the terms and conditions of the Insurance contract, cover will be provided to the Building Owner named in the Domestic Building Contract, and to the successors in title to the Building Owner.

Signed for and on behalf of the Insurer:

Martin McConnell

Martin McConnell
Chief Executive Officer, Assetinsure Pty Ltd

Verify This Certificate Is Authentic



dbi.assetinsure.com.au/verify

IMPORTANT

If the builder's name and/or its ABN/ACN, type of domestic building work and contract price listed above does not exactly match with the information on the domestic building contract, please contact Assetinsure immediately. If these details are incorrect, the domestic building work may not be covered.

This certificate covers the single home described above only. If more than one home has/is being built on one site (such as duplex or unit) a separate certificate is required for each home. If 3 or more homes are proposed/under construction the description of works above should be New Residential - Multi Dwelling.

6981

FORM 16
Regulation 192
Building Act 1993
Building Regulations 2018

OCCUPANCY PERMIT
(UNITS 1 - 3)

Property Details

Number: 68, 68a, 68b,
70, 70a & 70b

Street/Road: Tyquin Street

Suburb: Laverton

Postcode: 3028

Lot/s: 1 - 6

LP/PS: 830422T

Volume: 12186

Folio: 266 to 271

Crown Allotment:

Section No:

Parish: **Truganina**

County: Bourke

Municipal District: Hobsons Bay City Council

Building Permit Details

Building Permit No.: 8270121149762

Version of BCA Applicable to Building Permit: **BCA 2019 Volume 2**

Building Details: Construction of Unit Development & Garages

Part of building to which permit applies: **Units 1 to 3**

Permitted use: Residential

BCA class of building: **1a(a)**

Maximum permissible floor live load: 1.5kPa

Maximum number of people to be accommodated:

Part of building to which permit applies: **Garages (Units 1 to 3)**

Permitted use: **Garage**

BCA class of building: 10a

Maximum permissible floor live load: 2.5kPa

Maximum number of people to be accommodated:

Storeys Contained: 2

Rise in Storeys (for Class 2-9 buildings):

Effective Height:

Type of Construction:

Exemption from, or consent to partial compliance with, certain requirements

The following exemption from, or a consent to partial compliance with, certain requirements of the Building Regulations 2018 was granted or given under regulation 229(2), 231(2), 233(3) or 234(2) of the Building Regulations 2018 in relation to the building work to which this permit applies:

Part or Whole of Building or Place of Public Entertainment or Building Work Exempt From, or Given Consent to Partial Compliance With, Requirements of The Building Regulations 2018	Nature and Scope of Exemption
Building Proposed Units 1 to 6 & garages	A Combined Allotment Statement has been granted to allow Lot 1 to Lot 6 to be treated as one allotment under Building Regulation 67.

Performance Solution

A performance solution was used to determine compliance with the following performance requirements of the BCA that relate to the building to which this permit applies:

Relevant Performance Requirement	Details of Performance Solution
P2.1.1 Structural stability and resistance P2.2.2 Weatherproofing	To permit use of BRAC accredited Masterwall Polystyrene cladding.
P2.3.1	To provide technical justification for external walls within 1.8m of the adjacent building that do not commence at footings or ground slab or above a separating wall and are not proposed to be fire rated (but more than 900mm from the future line of subdivision). To provide technical justification for eaves and gutters to be located within 900mm of another building on the same allotment (but more than 450mm from future line of subdivision). To provide technical justification for the porches being located within 1800mm of another building on the same allotment (and within 900mm of the future allotment boundary) and not provided with a fire rated external wall. To provide technical justification for the fire rated separating walls between dwellings to not fully comply with the listed system. To provide technical justification for the fire rated separating wall floor/ceiling and roof junctions between dwellings to not fully comply with the listed system.

Reporting Authorities

The following bodies are Prescribed Reporting Authorities for the purpose of the application for this permit in relation to the matters set out below:

Reporting Authority	Matter Reported On or Consented To	Regulation No.
Council	Point of discharge of storm water	Reg. 133(2)

Conditions to which this permit is subject

Occupation is subject to the following condition(s):

1. This Occupancy Permit relates to Units 1 - 3 only (68, 68a, 68b Tyquin Street)
2. All services to be connected including all cooking appliances, hot water appliances and if applicable, rainwater tank/solar/recycled water to be operational prior to occupation

Suitability for Occupation

At the date this occupancy permit is issued, the building to which this permit applies is suitable for occupation.

Pursuant to Section 46 (2) of the Building Act 1993, this Occupancy Permit is not evidence that the building, part of the building or building work listed above complies with the Building Act 1993 or the Building Regulations 2018.

Relevant Building Surveyor

Name: **Minh Tran**

Address: **179 Peel Street, North Melbourne VIC 3051**

Email: **office@mktconsultants.com.au**

Building Practitioner Registration No.: **BS-U 27714**

Company Name: **MKT Building Surveyors Pty Ltd**

ABN: **75 257 733 970**

Occupancy Permit No.: **8270121149762**

Date of Issue of Permit: **07/06/2024**

Date of Final Inspection: **17/05/2024**

Signature:

A handwritten signature in black ink, appearing to be 'Minh Tran', written in a cursive style.

Due diligence checklist

What you need to know before buying a residential property

Before you buy a home, you should be aware of a range of issues that may affect that property and impose restrictions or obligations on you, if you buy it. This checklist aims to help you identify whether any of these issues will affect you. The questions are a starting point only and you may need to seek professional advice to answer some of them. You can find links to organisations and web pages that can help you learn more, by visiting the [Due diligence checklist page on the Consumer Affairs Victoria website](https://consumer.vic.gov.au/duediligencechecklist) (consumer.vic.gov.au/duediligencechecklist).

Urban living

Moving to the inner city?

High density areas are attractive for their entertainment and service areas, but these activities create increased traffic as well as noise and odours from businesses and people. Familiarising yourself with the character of the area will give you a balanced understanding of what to expect.

Is the property subject to an owners corporation?

If the property is part of a subdivision with common property such as driveways or grounds, it may be subject to an owners corporation. You may be required to pay fees and follow rules that restrict what you can do on your property, such as a ban on pet ownership.

Growth areas

Are you moving to a growth area?

You should investigate whether you will be required to pay a growth areas infrastructure contribution.

Flood and fire risk

Does this property experience flooding or bushfire?

Properties are sometimes subject to the risk of fire and flooding due to their location. You should properly investigate these risks and consider their implications for land management, buildings and insurance premiums.

Rural properties

Moving to the country?

If you are looking at property in a rural zone, consider:

- Is the surrounding land use compatible with your lifestyle expectations? Farming can create noise or odour that may be at odds with your expectations of a rural lifestyle.
- Are you considering removing native vegetation? There are regulations which affect your ability to remove native vegetation on private property.
- Do you understand your obligations to manage weeds and pest animals?

Can you build new dwellings?

Does the property adjoin crown land, have a water frontage, contain a disused government road, or are there any crown licences associated with the land?

Is there any earth resource activity such as mining in the area?

You may wish to find out more about exploration, mining and quarrying activity on or near the property and consider the issue of petroleum, geothermal and greenhouse gas sequestration permits, leases and licences, extractive industry authorisations and mineral licences.

Soil and groundwater contamination

Has previous land use affected the soil or groundwater?

You should consider whether past activities, including the use of adjacent land, may have caused contamination at the site and whether this may prevent you from doing certain things to or on the land in the future.

(04/10/2016)

Land boundaries

Do you know the exact boundary of the property?

You should compare the measurements shown on the title document with actual fences and buildings on the property, to make sure the boundaries match. If you have concerns about this, you can speak to your lawyer or conveyancer, or commission a site survey to establish property boundaries.

Planning controls

Can you change how the property is used, or the buildings on it?

All land is subject to a planning scheme, run by the local council. How the property is zoned and any overlays that may apply, will determine how the land can be used. This may restrict such things as whether you can build on vacant land or how you can alter or develop the land and its buildings over time.

The local council can give you advice about the planning scheme, as well as details of any other restrictions that may apply, such as design guidelines or bushfire safety design. There may also be restrictions – known as encumbrances – on the property's title, which prevent you from developing the property. You can find out about encumbrances by looking at the section 32 statement.

Are there any proposed or granted planning permits?

The local council can advise you if there are any proposed or issued planning permits for any properties close by. Significant developments in your area may change the local 'character' (predominant style of the area) and may increase noise or traffic near the property.

Safety

Is the building safe to live in?

Building laws are in place to ensure building safety. Professional building inspections can help you assess the property for electrical safety, possible illegal building work, adequate pool or spa fencing and the presence of asbestos, termites, or other potential hazards.

Building permits

Have any buildings or retaining walls on the property been altered, or do you plan to alter them?

There are laws and regulations about how buildings and retaining walls are constructed, which you may wish to investigate to ensure any completed or proposed building work is approved. The local council may be able to give you information about any building permits issued for recent building works done to the property, and what you must do to plan new work. You can also commission a private building surveyor's assessment.

Are any recent building or renovation works covered by insurance?

Ask the vendor if there is any owner-builder insurance or builder's warranty to cover defects in the work done to the property.

Utilities and essential services

Does the property have working connections for water, sewerage, electricity, gas, telephone and internet?

Unconnected services may not be available, or may incur a fee to connect. You may also need to choose from a range of suppliers for these services. This may be particularly important in rural areas where some services are not available.

Buyers' rights

Do you know your rights when buying a property?

The contract of sale and section 32 statement contain important information about the property, so you should request to see these and read them thoroughly. Many people engage a lawyer or conveyancer to help them understand the contracts and ensure the sale goes through correctly. If you intend to hire a professional, you should consider speaking to them before you commit to the sale. There are also important rules about the way private sales and auctions are conducted. These may include a cooling-off period and specific rights associated with 'off the plan' sales. The important thing to remember is that, as the buyer, you have rights.